



CHAPTER i.

An Act to confirm a Provisional Order under the Private Legislation Procedure (Scotland) Act 1899 relating to Aberdeen Corporation Water. A.D. 1916.
[19th April 1916.]

WHEREAS His Majesty's Secretary for Scotland has after inquiry held before Commissioners made the Provisional Order set forth in the schedule hereunto annexed under the provisions of the Private Legislation Procedure (Scotland) Act 1899 and it is requisite that the said Order should be confirmed by Parliament: 62 & 63 Vict. c. 47.

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. The Provisional Order contained in the schedule hereunto annexed shall be and the same is hereby confirmed. Confirmation of Order in schedule.

2. This Act may be cited as the Aberdeen Corporation Water Order Confirmation Act 1916. Short title.

A.D. 1916.

SCHEDULE.

ABERDEEN CORPORATION WATER.

Provisional Order to authorise the Corporation of the City of Aberdeen to construct new waterworks and to take an additional supply of water from the River Dee and for other purposes.

25 & 26 Vict.
c. cciii.

WHEREAS by the Aberdeen Police and Waterworks Act 1862 (hereinafter called "the Act of 1862") powers were granted and provision made for the supply of water to the city and royal burgh of Aberdeen (hereinafter called "the city") from the River Dee at Cairnton and for other purposes and a body of Commissioners of Police was established for the purpose of carrying out the powers of that Act:

29 & 30 Vict.
c. xciii.
30 Vict. c. li.

And whereas by the General Police and Improvement (Scotland) Supplemental Act 1866 and by the Aberdeen Police and Waterworks Amendment Act 1867 the Act of 1862 was in certain respects amended:

34 & 35 Vict.
c. cxli.

And whereas by the Aberdeen Municipality Extension Act 1871 the municipal boundaries of the city were extended and defined and the powers of the Commissioners of Police acting under and in virtue of the Act of 1862 and the Acts amending the same were transferred to and vested in the lord provost magistrates and town council of the city (hereinafter referred to as "the Corporation") and the provisions of those Acts or some of them were made to apply to the city as extended and defined by the said Act of 1871:

46 & 47 Vict.
c. lx.
54 & 55 Vict.
c. cxxiv.

And whereas by the Aberdeen Extension and Improvement Act 1883 and the Aberdeen Corporation Act 1891 the boundaries of the city were further extended:

44 & 45 Vict.
c. lxxiii.
48 & 49 Vict.
c. cxxiii.
56 & 57 Vict.
c. cxciv.

And whereas further powers were conferred on the Corporation in relation to their water undertaking by the Aberdeen Corporation Act 1881 the Aberdeen Corporation Water Act 1885 and the Aberdeen Corporation (Gas and Water) Act 1893:

And whereas by the Act of 1862 the quantity of water to be taken from the River Dee by means of the works authorised by that Act was limited to six millions of gallons per day:

And whereas by the Aberdeen Corporation Water Act 1885 A.D. 1916.
the quantity of water to be taken by the Corporation from the
River Dee was increased to eight millions of gallons per day:

And whereas the existing waterworks of the Corporation
have become inadequate to provide a supply sufficient to meet
the growing demands of the city:

And whereas it is expedient that the Corporation should be
authorised to make provision for the better preservation of the
purity of the supply of water to the city:

And whereas it is expedient that the Corporation should be
authorised to construct and maintain the new waterworks herein-
after described and by means of the same and the existing
waterworks of the Corporation to take and use an additional
supply of water from the River Dee:

And whereas it is expedient that the Corporation should be
authorised to borrow additional money for the purpose of the
works by this Order authorised and for the general purposes of
the water undertaking:

And whereas estimates have been prepared by the Cor-
poration of the sums of money that will be required for the
purchase of lands and for the execution of the said works and
for the general purposes of the water undertaking and the said
estimates are as follows (that is to say):—

	£
For the purchase of lands and servitudes	- 10,200
For liming house buildings &c.	- 2,300
For reservoirs embankments dams tanks &c.	- 105,000
For tunnels and masonry conduits	- 27,000
For trunk mains	- 202,000
For machinery	- 2,500
For the renewal and improvement of the existing aqueduct between Cairnton and the city	- 30,000
For the general purposes of the water under- taking	- 71,000
Total	- £450,000

And whereas those works are permanent works and it is
expedient that the cost thereof should be spread over a term of
years:

A.D. 1916.

And whereas it is expedient that further provision should be made with respect to the water rates rents and charges leviable by the Corporation:

And whereas it is expedient that the other powers hereinafter mentioned should be conferred on the Corporation in relation to their water undertaking:

And whereas plans and sections showing the lines and levels of the works authorised by this Order and a book of reference thereto containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of the lands and other property required or which may be taken for the purposes or under the powers of this Order were duly deposited with the principal sheriff clerks of the counties of Aberdeen and Kincardine and are hereinafter respectively referred to as the deposited plans sections and book of reference:

And whereas the purposes aforesaid cannot be effected without an Order of the Secretary for Scotland confirmed by Parliament under the provisions of the Private Legislation Procedure (Scotland) Act 1899:

Now therefore in pursuance of the powers contained in the last-mentioned Act the Secretary for Scotland orders as follows:—

Short title
and cita-
tions.

1. This Order may be cited as the Aberdeen Corporation Water Order 1916 and this Order and the Aberdeen City Acts 1862 to 1915 may be cited together as the Aberdeen City Acts 1862 to 1916.

Interpreta-
tion.

2. In this Order the several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith have the same respective meanings unless there be something in the subject or context repugnant to such construction and the following expressions shall have the meanings assigned to them in this section:—

“The city” means the city and royal burgh of Aberdeen;

“The Corporation” means the lord provost magistrates and town-council of the city;

“The water undertaking” means the existing waterworks and water undertaking of the Corporation and the works and undertaking authorised by this Order;

“The Act of 1862” means the Aberdeen Police and Waterworks Act 1862;

“The Act of 1885” means the Aberdeen Corporation Water Act 1885; A.D. 1916.

“The Act of 1891” means the Aberdeen Corporation Act 1891;

“The City Acts” means the Aberdeen City Acts 1862 to 1915;

“The city rate” means the city rate as defined by the Act of 1891 as amended by subsequent Acts.

In the Acts incorporated with this Order unless there be something in the subject or context repugnant to such construction the expression “the undertakers” means the Corporation.

3. The following Acts and parts of Acts (so far as the same respectively are applicable for the purposes and are not inconsistent with the provisions of this Order) are hereby incorporated with and form part of this Order:— Incorporation of Acts.

The Lands Clauses Acts:

The clauses and provisions of the Railways Clauses Consolidation (Scotland) Act 1845 with respect to the temporary occupation of lands near the railway during the construction thereof and the crossing of roads and other interference therewith and in construing the said clauses and provisions the expression “the company” means the Corporation and the expression “the railway” means the works described in this Order and the expression “the centre of the railway” means any part of those works:

The Waterworks Clauses Acts 1847 and 1863 except the provisions of the Waterworks Clauses Act 1847 with respect to the amount of profit to be received by the undertakers when the waterworks are carried on for their benefit and except the words in section 44 of the Waterworks Clauses Act 1847 “with the consent in writing of the owner or reputed owner of any such house or the agent of such owner” and except section 83 relating to accounts.

4. Subject to the provisions of this Order the Corporation may in the counties of Aberdeen and Kincardine and in the lines and situation and upon the lands delineated on the deposited Power to make works

A.D. 1916. plans and described in the deposited book of reference make and maintain the following works shown on the deposited plans and sections (that is to say):—

Work No. 1 A new intake on the left bank of the River Dee at Cairnton to be situate immediately to the westward of and adjoining the existing intake of the waterworks of the Corporation and communicating with the said river:

Work No. 2 An Aqueduct No. 1 consisting of a conduit commencing at or in the new intake (Work No. 1) and terminating by a junction with the existing Cairnton Tunnel of the waterworks of the Corporation at or near the manhole at the west end of the said tunnel:

Work No. 3 An alteration and lowering of the invert of the Cairnton Tunnel and a widening of that tunnel commencing at the termination of the Aqueduct No. 1 (Work No. 2) and terminating at or near the manhole at the east end of the said tunnel:

Work No. 4 An Aqueduct No. 2 consisting of a conduit commencing by a junction with the Cairnton Tunnel at the termination of Work No. 3 and terminating at or in the storage reservoir (Work No. 6) hereinafter described:

Work No. 5 A liming station in the south-west corner of the enclosure numbered No. 2181 shown on the $\frac{1}{2500}$ Ordnance map (second edition 1900) Kincardineshire (new series) sheet VIII-3:

Work No. 6 A storage reservoir situate between the Cannie Burn and the private road numbered No. 2182 on the $\frac{1}{2500}$ Ordnance map (second edition 1900) Kincardineshire (new series) sheet VIII-3 and extending from the west side of the existing storage reservoir at Invercannie for a distance of two hundred and twenty yards or thereabouts in a westerly direction:

Work No. 7 A washout pipe at Invercannie commencing at or near the north-eastern corner of the filter beds at Invercannie and terminating in the River Dee:

Work No. 8 An Aqueduct No. 3 commencing by a junction with the outlet pipe from the filter beds immediately

east of the existing storage reservoir at Invercannie and A.D. 1916.
terminating in the existing Mannofield No. 2 Service
Reservoir : —

Work No. 9 An Aqueduct No. 4 commencing by a junction
with the Aqueduct No. 3 (Work No. 8) at a point one
hundred and three yards or thereabouts measured in a
north-westerly direction from the north end of the
suspension footbridge at Cults and terminating at or in
the existing Cults Steam Pumping Station :

Work No. 10 An Aqueduct No. 5 commencing at or in
the Cults Steam Pumping Station and terminating at
or in the service reservoir (Work No. 11) hereinafter
described :

Work No. 11 A service reservoir near Mannofield situate
in the enclosures numbered No. 2491 No. 2492 and
No. 2493 on the $\frac{1}{2500}$ Ordnance map (second edition
1901) Aberdeenshire sheet LXXV-14 :

Work No. 12 A washout pipe commencing at or in the
service reservoir (Work No. 11) hereinbefore described
and terminating by a junction with an existing drain
belonging to the Corporation at the Pitfodels Road :

Work No. 13 An Aqueduct No. 6 commencing in the
service reservoir (Work No. 11) hereinbefore described
and terminating by a junction in the North Deeside
Road at or near the north end of Morningside Road with
the existing water pipes or mains belonging to the
Corporation :

Work No. 14 A washout pipe at Banchory from the
Aqueduct No. 3 (Work No. 8) hereinbefore described
commencing at a point in that aqueduct one hundred
and fifty yards or thereabouts measured in a south-
westerly direction from the south-western corner of the
dwelling-house known as Kinneskie and terminating in
the River Dee :

Work No. 15 A washout pipe at Banchory from the
Aqueduct No. 3 (Work No. 8) hereinbefore described
commencing at a point in that aqueduct on the North
Deeside Road ninety yards or thereabouts measured in an
easterly direction from the junction of the said road with
the Raemoir Road and terminating in the River Dee :

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Work No. 16 A washout pipe at East New Banchory from the Aqueduct No. 3 (Work No. 8) hereinbefore described commencing at a point in that aqueduct sixty-three yards or thereabouts measured in a westerly direction from the southmost corner of the enclosure numbered No. 1589 shown on the $\frac{1}{2500}$ Ordnance map (second edition 1903) Kincardineshire (new series) sheets IX-2 and IX-6 and terminating at or in a watercourse at a point seventy yards or thereabouts measured in a southerly direction from the westmost corner of the said enclosure:

Work No. 17 A washout pipe at Nether Park from the Aqueduct No. 3 (Work No. 8) hereinbefore described commencing at a point in that aqueduct forty yards or thereabouts measured in an easterly direction from the southmost corner of the enclosure numbered No. 554 shown on the $\frac{1}{2500}$ Ordnance map (second edition 1900) Aberdeenshire XCIV^A-4 and terminating in a watercourse near the farm steading of Nether Park:

Work No. 18 A washout pipe at Cults from the Aqueduct No. 3 (Work No. 8) hereinbefore described commencing at a point in that aqueduct near the western corner of the public park at Cults and terminating at or in a watercourse near the southmost corner of the said public park.

Power to
make subsi-
diary works.

5. In addition to the foregoing works the Corporation may upon the said lands make form erect lay down and maintain all such proper dams walls embankments filters tanks overflow channels shafts tunnels adits aqueducts culverts cuts sluices watercourses weirs washouts meters gauges manholes rails sidings bridges engines machinery conduits mains pipes stand pipes air shafts air pipes water towers valves drains junctions hydraulic and electric apparatus telegraphs telephones apparatus roadways approaches fences buildings quarries works and conveniences and appliances as may be necessary or convenient in connection with or subsidiary to the before-mentioned works or any of them but nothing in this section shall exonerate the Corporation from any action indictment or other proceeding for nuisance in the event of any nuisance being caused or permitted by them Provided that any electric apparatus telegraphs and telephones erected laid down or maintained by the Corporation shall not be used for the transmission of any telegram which is within the

exclusive privilege conferred upon the Postmaster-General by the Telegraph Act 1869 and shall be so constructed maintained and used as to prevent any interference with any telegraphic line (as defined by the Telegraph Act 1878) belonging to or used by the Postmaster-General or with telegraphic communication by means of such line. A.D. 1916.

6. In the construction of the works authorised by this Order the Corporation may deviate laterally to any extent not exceeding the limits of lateral deviation shown on the deposited plans and where the line of any work is shown on the said plans as passing along a road and one or both of such limits are not shown on the said plans the said limits of deviation shall be the boundary or boundaries of such road and for that purpose the waste lands or margins on each side of a road shall be deemed to be part of the road and they may also deviate vertically from the levels shown on the deposited sections to any extent not exceeding in the case of any reservoir three feet upwards and to any extent downwards and in the case of other works eight feet upwards and to any extent downwards Provided as follows (that is to say):— Limits of deviation.

The Corporation shall not construct any embankment or wall of any reservoir of a greater height above the general surface of the ground than that shown on the deposited sections in respect of the corresponding embankment or wall and three feet in addition :

Except for the purpose of crossing over a stream no part of the aqueduct or pipes shall be raised above the surface of the ground unless and except so far as is shown on the deposited sections.

7. For the purposes and during the construction of the works by this Order authorised and in maintaining the same and subject to the provisions of this Order the Corporation may use break up or cross over or under alter or stop up temporarily any streets highways roads lanes paths quays bridges railways tramways passages sewers drains watercourses mill lades or mill dams sluices gas pipes and water pipes and electric or telephonic apparatus in any of the lands shown on the deposited plans and specified in the deposited book of reference which they may find it expedient for any of those purposes so to interfere with but they shall provide when possible a proper temporary substitute Alteration of roads &c. temporarily.

A.D. 1916. — before interrupting the traffic on any such street highway road lane path quay bridge railway tramway or passage or the flow of water gas sewage or electricity or telephonic communication in any such sewer drain watercourse mill lade sluice pipe or apparatus and shall make compensation to all persons injuriously affected by the exercise of the powers of this section:

Provided that nothing in this section contained shall extend to authorise any interference with—

(A) Any electric telegraphic or telephonic apparatus or other property of His Majesty's Postmaster-General; or

(B) Any works of any undertakers within the meaning of the Electric Lighting Acts 1882 to 1909 to which the provisions of section 15 of the Electric Lighting Act 1882 apply except in accordance with and subject to the provisions of that section.

Power to acquire lands.

8. Subject to the provisions and for the purposes of this Order the Corporation may enter upon take and use all or any of the lands delineated on the deposited plans and described in the deposited book of reference.

Power to grant servitudes &c. by agreement.

9. Persons empowered by the Lands Clauses Acts to sell and convey or dispose of lands may if they think fit subject to the provisions of those Acts and of this Order grant to the Corporation any servitude right or privilege (not being a servitude right or privilege of water in which persons other than the grantors have an interest) required for the purposes of this Order in over or affecting any such lands and the provisions of the said Acts with respect to lands and annual feu duties or ground annuals so far as the same are applicable in this behalf shall extend and apply to such grants and to such servitudes rights and privileges as aforesaid respectively.

Owners may be required to sell parts only of certain properties.

10. And whereas in the construction of the works authorised by this Order it may happen that portions only of certain houses or other buildings shown on the deposited plans may be sufficient for the purposes of the same and that such portions may be severed from the remainder of the said properties without material detriment thereto Therefore notwithstanding section 90 of the Lands Clauses Consolidation (Scotland) Act 1845 the owners of and other persons interested in any of the properties described in the schedule to this Order and whereof

parts only are required for the purposes of this Order may if such portions can in the opinion of the arbiter to whom the question of disputed compensation shall be submitted be severed from the remainder of the premises without material detriment thereto be required to sell and convey to the Corporation the portions only of the premises so required without the Corporation being obliged or compellable to purchase the whole or any greater portion thereof the Corporation paying for the portion taken by them and making compensation for any damage sustained by the owners thereof and other parties interested therein by severance or otherwise. A.D. 1916.

11.—(1) The Corporation may in lieu of acquiring any lands for the purposes of the works authorised by this Order where the same are intended to be constructed underground acquire such servitudes and wayleaves only in such lands as they may require for such purposes and may give notice to treat in respect of such servitudes and wayleaves describing the nature thereof and the provisions of the Lands Clauses Acts shall apply to and in respect of the acquisition of such servitudes and wayleaves as fully as if the same were lands within the meaning of those Acts. Corporation may require servitudes and wayleaves only in certain cases.

(2) As regards any lands in respect of which the Corporation have acquired servitudes and wayleaves only under the provisions of this section the Corporation shall not be required or entitled to fence off or sever such lands from the adjoining lands but the owners or occupiers for the time being shall subject to such servitudes and wayleaves have the same rights to use and cultivate the said lands at all times as if the Act confirming this Order had not passed.

(3) Provided always that nothing in this section contained shall authorise the Corporation to acquire by compulsion any such servitudes and wayleaves in any case in which the owner in his particulars of claim shall require the Corporation to acquire the lands in respect of which they have given notice to treat for the acquisition of servitudes and wayleaves only and every notice to treat for the acquisition of servitudes and wayleaves shall be endorsed with notice of this provision but this subsection shall not apply in regard to so much of any aqueduct by this Order authorised as shall be in tunnel and at a depth of not less than twenty feet from the surface of the ground.

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Power to acquire and hold lands for securing purity of waters.

12. The Corporation may by agreement acquire or take on lease and may hold either permanently or temporarily any lands not exceeding in the whole one hundred acres within the drainage area of the River Dee above the new intake at Cairnton by this Order authorised or acquire by agreement servitudes or restrictions over any such lands which may in their opinion be necessary or desirable for the purpose of securing the purity of the River Dee and the waters in the said drainage area but nothing in this Order shall exonerate the Corporation from any action interdict or other proceeding for nuisance in the event of any nuisance being caused or permitted by them upon any land purchased leased or held under the powers of this section and no house or building shall be erected on any such lands other than any houses or buildings which may be required in connection with the water undertaking.

Power to agree as to drainage of lands &c.

13. The Corporation may make and carry into effect agreements with the owners lessees or occupiers of any lands within the drainage area of the River Dee above the new intake at Cairnton by this Order authorised with reference to the execution by the Corporation or such owners lessees or occupiers of such works as may be necessary for the purpose of draining such lands or any of them or for more effectually preserving the purity of the River Dee and the waters in the said drainage area.

Compensation to be settled by single arbiter.

14. Subject to the provisions of this Order all cases of disputed compensation in respect of land taken compulsorily under this Order or whereby any compensation falls under this Order to be determined under the provisions of the Lands Clauses Acts shall notwithstanding anything contained in those Acts be determined by a single arbiter to be appointed by the parties or in case both parties do not concur in the appointment of a single arbiter it shall be in the power of either party to apply to the Secretary for Scotland to appoint a single arbiter to determine the compensation to be paid and it shall not be competent thereafter to have the same determined by arbiters oversman sheriff or jury acting under the last-mentioned Acts The said arbiter upon appointment shall be deemed to be a sole arbiter within the meaning of the Lands Clauses Acts and the provisions of those Acts with regard to arbitration shall apply accordingly and the arbiter shall failing agreement and

notwithstanding anything contained in those Acts determine the amount of the expenses in the arbitration and such determination shall be final The remuneration of the said arbiter shall failing agreement be fixed by the Secretary for Scotland. A.D. 1916.

15. The tribunal to whom any question of disputed purchase-money or compensation under this Order in respect of land taken compulsorily or otherwise is referred shall if so required by the Corporation award and declare whether a statement in writing of the amount of compensation claimed has been delivered to the Corporation by the claimant giving sufficient particulars and in sufficient time to enable the Corporation to make a proper offer and if the tribunal shall be of opinion that no such statement giving sufficient particulars and in sufficient time shall have been delivered and that the Corporation have been prejudiced thereby the tribunal shall have power to decide whether the claimant's costs or any part thereof shall be borne by the claimant: Costs of arbitration in certain cases.

Provided that the sheriff of the county in which the lands are situate in respect of which the claim has arisen may permit any claimant after seven days' notice in writing to the Corporation to amend the statement of the claim delivered by him to the Corporation in case of discovery of any error or mistake therein or for any other reasonable cause (such error mistake or cause to be established to the satisfaction of the sheriff after hearing the Corporation if they object to the amendment) and such amendment shall be subject to such terms enabling the Corporation to investigate the amended claim and to make an offer de novo and as to postponing the hearing of the claim and as to costs of the inquiry and otherwise as to such sheriff may seem just and proper under all the circumstances of the case:

Provided also that this section shall be applicable only in cases where the notice to treat under the Lands Clauses Consolidation (Scotland) Act 1845 either contained or was endorsed with a notice of the effect of this section.

16.—(1) In this section the expression "local authority" means as regards any county the county council as regards any district the district committee of the district and as regards any burgh the town council of the burgh. Accommodation for workmen employed on construction of works.

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(2) The Corporation shall erect fit up and maintain or provide—

(A) Such huts or buildings for the accommodation of the workmen employed in and about the construction of the works authorised by this Order ;

(B) Such hospital accommodation for the treatment of cases of sickness or accident among such workmen including accommodation for dealing with infectious diseases ;

as shall be reasonably necessary having regard to the accommodation available in the neighbourhood of or conveniently accessible from the said works and shall provide and maintain proper and sufficient sanitary accommodation in connection with every such building and hospital.

(3) The Corporation shall pay all reasonable costs and expenses incurred in respect of the medical and surgical treatment of any workman employed on the construction of the said works who is treated in any hospital accommodation provided by them except in so far as such costs and expenses are payable under the provisions of the National Insurance Act 1911 or any Act amending the same or otherwise.

(4) The medical officer of health of the local authority in whose district such accommodation is afforded under this section shall be entitled at any time to enter into and inspect and examine any accommodation afforded under this section in order to ascertain whether overcrowding exists therein and whether proper and sufficient sanitary arrangements are provided.

(5) The Corporation shall give such officer all facilities and information which he requires for the purpose of the performance of his duties including the right to enter upon the said works and any person obstructing such officer in the performance of his duty under this section shall be liable on summary conviction to a fine not exceeding forty shillings.

(6) If at any time it appears to the local authority that the Corporation have failed to afford or maintain accommodation in accordance with subsection (2) of this section the Corporation shall afford and maintain such accommodation as the local authority may require. Provided that if within fourteen days after the receipt of notice of any requirement of the local authority under this subsection the Corporation give notice to

the local authority that they dispute the reasonableness of any such requirement the difference shall be determined by the Local Government Board for Scotland (in this section referred to as "the Board") on the application of either of the parties and the Board may make such requirements (if any) in variation of the requirements of the local authority as they may think fit and the requirements of the Board shall be final and binding on both parties. Provided that if it appears to the Board at any time that sufficient provision for the aforesaid purposes is not made the Board shall have power to require the Corporation to make provision or additional provision therefor to the satisfaction of the Board. For the purposes of this section the Board shall have the same powers of holding inquiries and of requiring reports to be made by local authorities and their officials as they have under the Public Health (Scotland) Act 1897 for the purposes of that Act and the provisions of the said Act relating to such inquiries and reports shall apply accordingly. A.D. 1916.

(7) If the Corporation fail to afford and maintain accommodation in accordance with the provisions of this section they shall be liable on summary conviction to a penalty not exceeding twenty pounds and to a further daily penalty not exceeding five pounds for every day on which the offence is continued after conviction and such penalties may be recovered by the local authority.

(8) Any expenses incurred by the local authority in carrying out the provisions of this section shall be repaid to the local authority by the Corporation and shall be recoverable as a debt due from the Corporation to the local authority.

(9) The Corporation shall pay to the Board any expenses incurred by the Board under this section including a sum not exceeding three guineas a day for the services of any inspector in connection with any local inquiry or investigation which they may consider necessary in the exercise of their powers under subsection (6) of this section and the expenses of any witnesses cited by the inspector.

17. The powers of the Corporation for the compulsory purchase of lands for the purposes of this Order shall cease after the expiration of five years after the passing of the Act confirming this Order. Period for compulsory purchase of lands.

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Period for
completion
of works.

18. The works by this Order authorised shall be completed within ten years after the passing of the Act confirming this Order and on the expiration of that period the powers by this Order granted to the Corporation for executing the said works shall cease except as to so much thereof as shall then be completed.

For protec-
tion of
county coun-
cil of county
of Aberdeen
and district
committee of
Aberdeen
district of
said county.

19. For the protection of the county council of the county of Aberdeen (in this section called "the county council") and the district committee of the Aberdeen district of the said county (in this section called "the district committee") the following provisions shall unless otherwise agreed upon in writing between the Corporation and the county council and the district committee apply and have effect (that is to say):—

- (1) All aqueducts conduits lines of pipes or other works to be laid by the Corporation in or along any county highway or in upon or across any county bridge shall as far as practicable be laid in such position in such highway or bridge or at the side thereof as the county council in writing under the hand of the surveyor for the district in which such highway or bridge is situated may reasonably direct:
- (2) All aqueducts conduits or lines of pipes to be laid by the Corporation in or along any county highway or county bridge shall consist of not more than two lines of pipes and the cover for each line of pipes shall be not less than two feet six inches measured from the surface of the road to the highest part of such pipes:
- (3) The provisions of the Waterworks Clauses Act 1847 with respect to the breaking up of streets and bridges and any sewers drains or tunnels within or under the same for the purpose of laying pipes shall extend and apply to all county highways and county bridges and any sewers drains or tunnels as aforesaid opened and broken up or interfered with or affected by the Corporation in the execution of the works authorised by this Order and the exercise of the powers of this Order Provided that the notice required by section 30 of the said Act of 1847 shall not be less than seven days instead of three days:
- (4) The plan required by section 31 of the said Act of 1847 shall be accompanied by a section of the proposed

works and a short specification thereof and shall be delivered by the Corporation to the county council or the surveyor for the district for approval in the case of a county bridge not less than one month and in all other cases not less than fourteen days before the Corporation propose to commence to interfere with any county bridge or to break or open up any county highway sewer drain or tunnel for the purpose of executing such works and the approval of the county council or the surveyor for the district to such plan section and specification may be given upon such conditions as the county council or the surveyor for the district may reasonably determine. Provided that the county council shall be deemed to have given such consent if within the said period of one month or fourteen days as the case may be after such plan section and specification shall have been submitted to the surveyor for the district he shall not have given written notice to the Corporation objecting thereto: A.D. 1916.

- (5) No greater length than two hundred yards of any county highway shall be broken up by the Corporation at any one place at one time without the consent in writing of the county council and all works to be executed by the Corporation shall be so executed by the Corporation as not to stop the traffic and so far as reasonably practicable not in any way to impede or interfere with the traffic on any such highway or over any county bridge or the approaches thereto and in case of default in compliance with this provision the county council may by their own servants and workmen or others employed by them clear any such highway and remove any such impediment to the traffic on any such highway or over any county bridge or the approaches thereto and may recover the expenses of and incident thereto from the Corporation:
- (6) Nothing in this Order contained shall authorise the Corporation to interfere with any county bridge culvert sewer drain or tunnel or water main or pipe of the county council or the district committee as the case may be without the consent in writing of the county

A.D. 1916.
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council or of the surveyor for the district which consent may be given upon such conditions as the county council or the surveyor for the district may reasonably determine. Provided that the county council shall be deemed to have given such consent if within one month after plans of the proposed works have been submitted to the surveyor for the district he shall not have given written notice to the Corporation objecting thereto :

(7) Nothing in this Order contained shall interfere with the right of the county council to alter the level of or to divert enlarge or improve in any manner they think fit any county highway in or along which any aqueduct conduit line of pipes or other works of the Corporation shall have been laid and the Corporation shall forthwith on receiving notice in writing under the hand of the clerk of the county council or the surveyor for the district alter the position of any such aqueduct conduit line of pipes or other works in the manner and to the extent prescribed by such notice or as in the case of difference shall be determined by arbitration as provided by subsection (17) of this section :

(8) Nothing in this Order contained shall interfere with the right of the county council at any time or times to remove alter or rebuild any county bridge or the approaches thereto over or near or attached to which any aqueduct conduit line of pipes or other works of the Corporation are carried in the same manner as they might have removed altered or rebuilt any such bridge or the approaches thereto if the Act confirming this Order had not been passed and such aqueduct conduit line of pipes or other works had not been constructed or laid over or near or attached to such bridge and in the event of any such bridge or the approaches thereto over or near or attached to which any such aqueduct conduit line of pipes or other works are laid being removed altered or rebuilt as aforesaid the Corporation shall at their own cost alter the position of such aqueduct conduit line of pipes or other works and any works by which such

aqueduct conduit line of pipes or other works are carried over or near or attached to such bridge or the approaches thereto as aforesaid Provided that during the removal alteration or rebuilding of such bridge as aforesaid the county council shall afford all reasonable facilities for temporarily carrying such aqueduct conduit line of pipes or other works across or along any road or stream so as not to interrupt the continuous supply of water or to diminish the pressure of such supply through such aqueduct conduit line of pipes or other works:

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- (9) Nothing in this Order contained shall interfere with the right of the county council or the district committee to alter the level of or to divert enlarge or improve in any manner they think fit any culvert sewer drain or tunnel or water main or pipe belonging to the county council or the district committee as the case may be or to lay additional culverts sewers drains or tunnels or water mains or pipes where they consider the same to be necessary Provided that in the event of any aqueduct conduit line of pipes or other works of the Corporation being so laid as to interfere with such alteration diversion enlargement or improvement of the said culverts sewers drains or tunnels or water mains or pipes or the laying of additional culverts sewers drains or tunnels or water mains or pipes such alteration diversion enlargement or improvement and such additional culverts sewers drains or tunnels or water mains or pipes where they pass over along or under the aqueduct or any works of the Corporation shall be carried out by the county council or the district committee as the case may be to the reasonable satisfaction and under the superintendence of the Corporation or their officers Provided further that if the cost of any such alteration diversion enlargement or improvement of the said culverts sewers drains or tunnels or water mains or pipes or of the laying of additional culverts sewers drains or tunnels or water mains or pipes is increased in consequence of the existence of any aqueduct conduit line of pipes or other works of the Corporation such

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increased cost as agreed upon by the parties or in the case of difference as shall be determined by arbitration shall be paid by the Corporation to the county council or the district committee :

- (10) On the completion of the works authorised by this Order the Corporation shall be bound to restore the road surface above the aqueduct conduit lines of pipes or other works where laid along the county highways or county bridges and also to restore and reinstate all drains culverts and other works necessary for or used in connection with the drainage of any county highway or bridge interfered with or affected by the operations of the Corporation whether such drains culverts or other works shall be laid in under or alongside any county highway or bridge or not all which works of restoration and reinstatement shall be carried out in accordance with a specification to be adjusted between the Corporation and the county council and failing adjustment by these bodies to be adjusted by the arbiter nominated for the purposes of subsection (14) of this section :
- (11) The Corporation shall during the progress of the works take all necessary steps at their own expense for protecting the public using any county highway or county bridge from injury and shall indemnify the county council against all costs losses or damages that may be incurred or suffered consequent upon their neglect or omission to provide such protection :
- (12) The Corporation shall make full compensation to the county council for all damage injury losses and expenses which may from time to time be incurred or suffered by reason or in consequence of the leaking bursting or giving way of any of the works by this Order authorised :
- (13) The county council shall not be liable for or in respect of any damage or injury done to any work of the Corporation by reason of such work being laid at a depth below the surface of any county highway or bridge insufficient for its protection from injury arising from the reasonable use of any steam or other roller or traction or other engine for the repair

of such county highway or from the passage of the traffic on such highway or bridge or in repairing any county bridge or the approaches thereto or any culvert or drain or other works : A.D. 1916.

- (14) For the purposes of section 57 of the Roads and Bridges (Scotland) Act 1878 and section 24 of the Local Government (Scotland) Act 1908 the Corporation shall be deemed to be the person by or in consequence of whose order any excessive weight shall have been passed or any extraordinary traffic conducted on the county highways in connection with the execution of the works by this Order authorised or the repair renewal enlargement alteration or improvement of the said works or of the existing works of the Corporation and upon the passing of the Act confirming this Order and in lieu of the provisions for an agreement contained in the said section 57 of the Roads and Bridges (Scotland) Act 1878 the following provisions shall apply and have effect The Corporation and the county council shall appoint an arbiter or failing agreement such arbiter shall be appointed by the sheriff of Aberdeen Kincardine and Banff on the application of either party for the purpose of determining any question which may arise regarding the damage done to the county highways by any excessive weight passing over the same or extraordinary traffic thereon in connection with the execution of the works authorised by this Order or the repair renewal enlargement alteration or improvement of the said works or of the existing works of the Corporation The said arbiter shall at the request of either party and after intimation to the other party examine the county highways and satisfy himself as to their condition prior to their being used for the purposes of the traffic in the execution of the works authorised by this Order or the repair renewal enlargement alteration or improvement of the said works or of the existing works of the Corporation and on receiving a report from the surveyor for the district that any portion of the county highways has been damaged

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and requires to be repaired as the result of such excessive weight or extraordinary traffic as aforesaid he shall after intimation to the Corporation and such enquiry as he may deem necessary authorise the execution by the county council of such repairs on the said highways as may be required and the said highways may be repaired by the county council accordingly and the arbiter shall determine the proportion of the cost of all such repairs to be borne by the Corporation and the county council respectively and on the arbiter certifying from time to time the proportion of the cost to be borne by the Corporation the same shall forthwith be paid by the Corporation to the county council The Corporation shall also pay all charges incurred to and by the arbiter in carrying out his duties under this subsection The decisions of the arbiter under this subsection shall be final:

- (15) The district committee may at any time apply to the Corporation for a supply of water either from the aqueducts conduits lines of pipes or other works of the existing water supply of the Corporation or the aqueducts conduits lines of pipes or other works by this Order authorised and the Corporation shall thereupon form the necessary connections at such point or points as may be agreed on between the district committee and the Corporation or as failing agreement shall be determined by arbitration as hereinafter in this section provided and shall give the district committee by means thereof a supply of water in bulk by meter for the special water supply districts of Culter and Cults or any other special water supply districts that may be formed in the Aberdeen district of the county of Aberdeen on the line of the existing aqueducts conduits lines of pipes or other works of the Corporation or the aqueducts conduits lines of pipes or other works authorised by this Order and that to an extent not exceeding in the aggregate one hundred and fifty thousand gallons per day of twenty-four hours at the same rate of charge for each thousand gallons of water supplied as may from time to time be charged by the Corporation per thousand gallons of water for water supplied by meter outside the compulsory limits

of water supply of the Corporation under deduction of twenty per centum from such rate and the district committee shall repay to the Corporation the cost of forming such connections including the supply and maintenance of meters as the same shall be agreed upon or ascertained by arbitration as hereinafter in this section provided. Provided further that such supply of one hundred and fifty thousand gallons per day shall not prejudice affect or restrict the supply of water from time to time required within the compulsory limits of water supply of the Corporation: A.D. 1916.

(16) The Corporation shall bear and on demand pay to the county council the reasonable expenses of superintending the construction of the works by this Order authorised and the repair renewal enlargement alteration or improvement thereof so far as such works are within the county of Aberdeen and so far as the same are situated in or may pass over under along or adjacent to or as they may affect any county highway road or bridge or any other works of the county council but such superintendence by the county council shall not relieve the Corporation from liability for any accident which may be occasioned by or through the operations of the Corporation or their contractors agents or workmen:

(17) If any difference shall arise between the Corporation and the county council under this section (other than under subsections (10) and (14) of this section) such difference shall be referred to the decision of an arbiter to be mutually chosen or failing agreement to be appointed by the sheriff of Aberdeen Kincardine and Banff on the application of either party and the decision of such arbiter shall be final:

(18) In this section the expression "the surveyor for the district" means the road surveyor of the Aberdeen district of the county of Aberdeen.

20. For the protection of the county council of the county of Kincardine (in this section called "the county council") and the district committee of the Upper Deeside district of the said county (in this section called "the district committee") the

For protection of county council of county of Kincardine

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and district writing between the Corporation and the county council and
committee of the district committee apply and have effect (that is to
Upper Dee- say) :—
side district
of said
county.

- (1) All aqueducts conduits lines of pipes or other works to be laid by the Corporation in or along any county highway or in upon or across any county bridge shall as far as practicable be laid in such position in such highway or bridge or at the side thereof as the county council in writing under the hand of the surveyor for the district in which such highway or bridge is situated may reasonably direct:
- (2) All aqueducts conduits or lines of pipes to be laid by the Corporation in or along any county highway or county bridge shall consist of not more than two lines of pipes and the cover for each line of pipes shall be not less than two feet six inches measured from the surface of the road to the highest part of such pipes:
- (3) The provisions of the Waterworks Clauses Act 1847 with respect to the breaking up of streets and bridges and any sewers drains or tunnels within or under the same for the purpose of laying pipes shall extend and apply to all county highways and county bridges and any sewers drains or tunnels as aforesaid opened and broken up or interfered with or affected by the Corporation in the execution of the works authorised by this Order and the exercise of the powers of this Order Provided that the notice required by section 30 of the said Act of 1847 shall not be less than seven days instead of three days:
- (4) The plan required by section 31 of the said Act of 1847 shall be accompanied by a section of the proposed works and a short specification thereof and shall be delivered by the Corporation to the county council or the surveyor for the district for approval in the case of a county bridge not less than one month and in all other cases not less than fourteen days before the Corporation propose to commence to interfere with any county bridge or to break or open up any

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county highway sewer drain or tunnel for the purpose of executing such works and the approval of the county council or the surveyor for the district to such plan section and specification may be given upon such conditions as the county council or the surveyor for the district may reasonably determine Provided that the county council shall be deemed to have given such consent if within the said period of one month or fourteen days as the case may be after such plan section and specification shall have been submitted to the surveyor for the district he shall not have given written notice to the Corporation objecting thereto:

- (5) No greater length than two hundred yards of any county highway shall be broken up by the Corporation at any one place at one time without the consent in writing of the county council and all works to be executed by the Corporation shall be so executed by the Corporation as not to stop the traffic and so far as reasonably practicable not in any way to impede or interfere with the traffic on any such highway or over any county bridge or the approaches thereto and in case of default in compliance with this provision the county council may by their own servants and workmen or others employed by them clear any such highway and remove any such impediment to the traffic on any such highway or over any county bridge or the approaches thereto and may recover the expenses of and incident thereto from the Corporation:
- (6) Nothing in this Order contained shall authorise the Corporation to interfere with any county bridge culvert sewer drain or tunnel or water main or pipe of the county council or the district committee as the case may be without the consent in writing of the county council or of the surveyor for the district which consent may be given upon such conditions as the county council or the surveyor for the district may reasonably determine Provided that the county council shall be deemed to have given such consent if within one month after plans of the proposed works have been submitted

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to the surveyor for the district he shall not have given written notice to the Corporation objecting thereto:

- (7) Nothing in this Order contained shall interfere with the right of the county council to alter the level of or to divert enlarge or improve in any manner they think fit any county highway in or along which any aqueduct conduit line of pipes or other works of the Corporation shall have been laid and the Corporation shall forthwith on receiving notice in writing under the hand of the clerk of the county council or the surveyor for the district alter the position of any such aqueduct conduit line of pipes or other works in the manner and to the extent prescribed by such notice or as in the case of difference shall be determined by arbitration as provided by subsection (17) of this section:
- (8) Nothing in this Order contained shall interfere with the right of the county council at any time or times to remove alter or rebuild any county bridge or the approaches thereto over or near or attached to which any aqueduct conduit line of pipes or other works of the Corporation are carried in the same manner as they might have removed altered or rebuilt any such bridge or the approaches thereto if the Act confirming this Order had not been passed and such aqueduct conduit line of pipes or other works had not been constructed or laid over or near or attached to such bridge and in the event of any such bridge or the approaches thereto over or near or attached to which any such aqueduct conduit line of pipes or other works are laid being removed altered or rebuilt as aforesaid the Corporation shall at their own cost alter the position of such aqueduct conduit line of pipes or other works and any works by which such aqueduct conduit line of pipes or other works are carried over or near or attached to such bridge or the approaches thereto as aforesaid. Provided that during the removal alteration or rebuilding of such bridge as aforesaid the county council shall afford all reasonable facilities for temporarily carrying such aqueduct conduit line of pipes or other works across or along any road

or stream so as not to interrupt the continuous supply of water or to diminish the pressure of such supply through such aqueduct conduit line of pipes or other works: A.D. 1916.

- (9) Nothing in this Order contained shall interfere with the right of the county council or the district committee to alter the level of or to divert enlarge or improve in any manner they think fit any culvert sewer drain or tunnel or water main or pipe belonging to the county council or the district committee as the case may be or to lay additional culverts sewers drains or tunnels or water mains or pipes where they consider the same to be necessary. Provided that in the event of any aqueduct conduit line of pipes or other works of the Corporation being so laid as to interfere with such alteration diversion enlargement or improvement of the said culverts sewers drains or tunnels or water mains or pipes or the laying of additional culverts sewers drains or tunnels or water mains or pipes such alteration diversion enlargement or improvement and such additional culverts sewers drains or tunnels or water mains or pipes where they pass over along or under the aqueduct or any works of the Corporation shall be carried out by the county council or the district committee as the case may be to the reasonable satisfaction and under the superintendence of the Corporation or their officers. Provided further that if the cost of any such alteration diversion enlargement or improvement of the said culverts sewers drains or tunnels or water mains or pipes or of the laying of additional culverts sewers drains or tunnels or water mains or pipes is increased in consequence of the existence of any aqueduct conduit line of pipes or other works of the Corporation such increased cost as the same shall be agreed upon by the parties or in the case of their differing as it shall be determined by arbitration shall be paid by the Corporation to the county council or the district committee as the case may be:
- (10) On the completion of the works authorised by this Order the Corporation shall be bound to restore the road surface above the aqueduct conduit lines of pipes or

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other works where laid along the county highways or county bridges and also to restore and reinstate all drains culverts and other works necessary for or used in connection with the drainage of any county highway or bridge interfered with or affected by the operations of the Corporation whether such drains culverts or other works shall be laid in under or alongside any county highway or bridge or not all which works of restoration and reinstatement shall be carried out in accordance with a specification to be adjusted between the Corporation and the county council and failing adjustment by these bodies to be adjusted by the arbiter nominated for the purposes of subsection (14) of this section :

- (11) The Corporation shall during the progress of the works take all necessary steps at their own expense for protecting the public using any county highway or county bridge from injury and shall indemnify the county council against all costs losses or damages that may be incurred or suffered consequent upon their neglect or omission to provide such protection :
- (12) The Corporation shall make full compensation to the county council for all damage injury losses and expenses which may from time to time be incurred or suffered by reason or in consequence of the leaking bursting or giving way of any of the works by this Order authorised :
- (13) The county council shall not be liable for or in respect of any damage or injury done to any work of the Corporation by reason of such work being laid at a depth below the surface of any county highway or bridge insufficient for its protection from injury arising from the reasonable use of any steam or other roller or traction or other engine for the repair of such county highway or from the passage of the traffic on such highway or bridge or in repairing any county bridge or the approaches thereto or any culvert or drain or other works :
- (14) For the purposes of section 57 of the Roads and Bridges (Scotland) Act 1878 and section 24 of the Local Government (Scotland) Act 1908 the Corporation shall

be deemed to be the person by or in consequence of whose order any excessive weight shall have been passed or any extraordinary traffic conducted on the county highways in connection with the execution of the works by this Order authorised or the repair renewal enlargement alteration or improvement of the said works or of the existing works of the Corporation and upon the passing of the Act confirming this Order and in lieu of the provisions for an agreement contained in the said section 57 of the Roads and Bridges (Scotland) Act 1878 the following provisions shall apply and have effect The Corporation and the county council shall appoint an arbiter or failing agreement such arbiter shall be appointed by the sheriff of Aberdeen Kincardine and Banff on the application of either party for the purpose of determining any question which may arise regarding the damage done to the county highways by any excessive weight passing over the same or extraordinary traffic thereon in connection with the execution of the works authorised by this Order or the repair renewal enlargement alteration or improvement of the said works or of the existing works of the Corporation The said arbiter shall at the request of either party and after intimation to the other party examine the county highways and satisfy himself as to their condition prior to their being used for the purposes of the traffic in the execution of the works authorised by this Order or the repair renewal enlargement alteration or improvement of the said works or of the existing works of the Corporation and on receiving a report from the surveyor for the district that any portion of the county highways has been damaged and requires to be repaired as the result of such excessive weight or extraordinary traffic as aforesaid he shall after intimation to the Corporation and such inquiry as he may deem necessary authorise the execution by the county council of such repairs on the said highways as may be required and the said highways may be repaired by the county council accordingly and the arbiter shall determine the proportion of the cost of all such repairs to be borne

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by the Corporation and the county council respectively and on the arbiter certifying from time to time the proportion of the cost to be borne by the Corporation the same shall forthwith be paid by the Corporation to the county council. The Corporation shall also pay all charges incurred to and by the arbiter in carrying out his duties under this subsection. The decisions of the arbiter under this subsection shall be final:

- (15) The district committee may at any time apply to the Corporation for a supply of water either from the aqueducts conduits lines of pipes or other works of the existing water supply of the Corporation or the aqueducts conduits lines of pipes or other works by this Order authorised and the Corporation shall thereupon form the necessary connections at such point or points as may be agreed on between the district committee and the Corporation or as failing agreement shall be determined by arbitration as hereinafter in this section provided and shall give the district committee by means thereof a supply of water in bulk by meter for any special water supply district or districts that may be formed in the Upper Deeside district of the county of Kincardine on the line of the existing aqueducts conduits lines of pipes or other works of the existing water supply of the Corporation or the aqueducts conduits lines of pipes or other works authorised by this Order and that to an extent not exceeding in the aggregate fifty thousand gallons per day of twenty-four hours. The price to be paid for each thousand gallons of such supply shall be at the same rate as may from time to time be charged by the Corporation per thousand gallons of water for water supplied by meter outside the compulsory limits of water supply of the Corporation under deduction of twenty per centum from such rate and the district committee shall repay to the Corporation the cost of forming such connections including the supply and maintenance of meters as the same shall be agreed upon or ascertained by arbitration as hereinafter in this section provided. Provided further

that such supply of fifty thousand gallons per day shall not prejudice affect or restrict the supply of water from time to time required within the compulsory limits of water supply of the Corporation: A.D. 1916.

(16) The Corporation shall bear and on demand pay to the county council the reasonable expenses of superintending the construction of the works by this Order authorised and the repair renewal enlargement alteration or improvement thereof so far as such works are within the county of Kincardine and so far as the same are situated in or may pass over under along or adjacent to or as they may affect any county highway road or bridge or any other works of the county council but such superintendence by the county council shall not relieve the Corporation from liability for any accident which may be occasioned by or through the operations of the Corporation or their contractors agents or workmen:

(17) If any difference shall arise between the Corporation and the county council or the district committee under this section (other than under subsections (10) and (14) of this section) such difference shall be referred to the decision of an arbiter to be mutually chosen or failing agreement to be appointed by the sheriff of Aberdeen Kincardine and Banff on the application of either party and the decision of such arbiter shall be final:

(18) In this section the expression "the surveyor for the district" means the road surveyor of the Upper Deeside district of the county of Kincardine.

21. For the protection of the provost magistrates and councillors (hereinafter in this section called "the town council") of the burgh of Banchory (hereinafter in this section called "the burgh") the following provisions shall unless otherwise agreed upon in writing between the Corporation and the town council apply and have effect (that is to say):— For protection of burgh of Banchory.

(1) Every aqueduct conduit line of pipes or other work to be laid by the Corporation in or along any street in the burgh shall consist of not more than one line

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of pipes and shall as far as practicable be laid in such position in or at the side of the street as the town council in writing may reasonably direct and the cover for every such aqueduct conduit line of pipes or other work shall not be less than two feet six inches measured from the surface of the street to the highest part of the work:

- (2) Before commencing any works authorised by this Order or any subsequent repair renewal enlargement alteration or improvement thereof or of the existing works of the Corporation the execution of which may in any way interfere with or affect any street in the burgh or any sewers drains culverts water pipes gas pipes electric mains or other works belonging to the town council the Corporation shall give to the town council not less than twenty-one days' notice in writing accompanied by plans and sections showing the manner in which such works are proposed to be executed and a short specification thereof which plans sections and specification shall be subject to the approval of the town council (which shall not be unreasonably withheld) previously to such works being commenced. Provided that if the town council do not within twenty-one days after service of such notice on them intimate to the Corporation their approval or disapproval of the said plans sections and specification the Corporation may proceed to execute the works in accordance therewith. Provided further that in case of emergency such notice as is reasonably practicable shall be given:
- (3) The Corporation shall execute such works and any subsequent repair renewal enlargement alteration or improvement thereof in accordance with the before-mentioned plans sections and specification and under the superintendence and to the reasonable satisfaction of the town council or of any person empowered by them to that effect:
- (4) No greater length than one hundred and fifty yards of any street in the burgh shall be broken up by the Corporation at any one place at one time without the

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consent in writing of the town council and all works to be executed by the Corporation shall be so executed by the Corporation as not to stop the traffic and so far as reasonably practicable not in any way to impede or interfere with the traffic on any such street and in case of default in compliance with this provision the town council may by their own servants and workmen or others employed by them clear any such street and remove any such impediment to the traffic thereon and may recover the expenses of and incident thereto from the Corporation :

- (5) Nothing in this Order contained shall authorise the Corporation to interfere with any bridge culvert sewer drain water pipe gas pipe electric main or other property of the town council without the consent in writing of the town council which consent may be given upon such conditions as the town council may reasonably determine Provided that the town council shall be deemed to have given such consent if within the period of twenty-one days after plans of the proposed works shall have been submitted to the town council with sections and specification as hereinbefore provided they shall not have given written notice to the Corporation objecting thereto :
- (6) Nothing in this Order contained shall interfere with the right of the town council to alter the level of or to divert or improve in any manner they think fit any street in the burgh in or along which any aqueduct conduit line of pipes or other works of the Corporation by this Order authorised shall have been laid and the Corporation shall forthwith on receiving notice in writing under the hand of the town clerk or burgh surveyor alter the position of any such aqueduct conduit line of pipes or other works in the manner and to the extent prescribed by such notice or as in the case of difference shall be determined by arbitration as provided by subsection (13) of this section :
- (7) For the protection of the works interests and property of the town council in connection with the execution of the works by this Order authorised or any subsequent repair renewal enlargement alteration or improvement

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thereof or of the existing works of the Corporation the town council shall be entitled to appoint and employ any suitable person at such remuneration as they may reasonably think proper to superintend the said works in their interest so far as the said works are situated in or shall pass over along under or adjacent to or may in any way affect any burgh street road lane footpath or bridge or any works interests or property of the town council and the Corporation shall be bound to repay to the town council the expense thereby incurred by them but such superintendence by the town council shall not relieve the Corporation from liability for any accident which may be occasioned by or through the operations of the Corporation or their contractors agents or workmen :

- (8) Nothing in this Order contained shall interfere with the right of the town council to alter the level of or to divert enlarge or improve in any manner they think fit any culvert sewer drain main pipe or other works belonging to them or to lay additional culverts sewers drains mains pipes or other works where they consider the same to be necessary Provided that in the event of any aqueduct conduit line of pipes or other works of the Corporation being so laid as to interfere with such alteration diversion enlargement or improvement of the said culverts sewers drains mains pipes or other works of the town council or the laying of additional culverts sewers drains mains pipes or other works by the town council such alteration diversion enlargement or improvement and such additional culverts sewers drains mains pipes or other works where they pass over along under or adjacent to the aqueduct or any works of the Corporation shall be carried out by the town council to the reasonable satisfaction and under the superintendence of the Corporation or their officers Provided further that if the cost of any such alteration diversion enlargement or improvement of the said culverts sewers drains mains pipes or other works of the town council or the laying of additional culverts sewers

drains mains pipes or other works by the town council is increased in consequence of the existence of any aqueduct conduit line of pipes or other works of the Corporation such increased cost as the same may be agreed upon by the parties or in the case of their differing as it shall be determined by arbitration shall be paid by the Corporation to the town council:

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- (9) The town council shall not be liable for or in respect of any damage or injury done to any work of the Corporation by reason of such work being laid at a depth below the surface of any street in the burgh insufficient for its protection from injury arising from the reasonable use of any steam or other roller or traction or other engine for the repair of such street or from the passage of the traffic on such street or in repairing any culvert sewer drain water pipe gas pipe electric main or other works of the town council:
- (10) The works of the Corporation shall be carried out and completed without any undue delay after the commencement thereof and the Corporation shall reinstate and make good all streets and all sewers drains water pipes gas pipes electric mains or other works belonging to the town council which may be broken up or interfered with by the Corporation and shall make good any injury or interference at any time caused to any street or any works or property of the town council by reason or in consequence of the bursting leakage or failure of any work of the Corporation all to the reasonable satisfaction of the town council or of an arbiter nominated for the purposes of subsection (11) of this section and shall at their own expense at all times while any street shall be opened broken up occupied or interfered with cause the same to be properly fenced guarded and lighted and properly and sufficiently protected for the safety of the public using the same to the like reasonable satisfaction and in case of their default in any of the above matters the town council may do the necessary works and things and recover

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the costs and expenses incurred by them in connection therewith from the Corporation and the Corporation shall be further bound to indemnify the town council against all costs losses or damages that may be incurred or suffered by them in consequence of such default:

- (11) For the purposes of section 57 of the Roads and Bridges (Scotland) Act 1878 and section 24 of the Local Government (Scotland) Act 1908 the Corporation shall be deemed to be the person by or in consequence of whose order any excessive weight shall have been passed or any extraordinary traffic conducted on the streets in the burgh in connection with the execution of the works by this Order authorised or the repair renewal enlargement alteration or improvement of the said works or of the existing works of the Corporation and upon the passing of the Act confirming this Order and in lieu of the provisions for an agreement contained in the said section 57 of the Roads and Bridges (Scotland) Act 1878 the following provisions shall apply and have effect The Corporation and the town council shall appoint an arbiter or failing agreement such arbiter shall be appointed by the sheriff of Aberdeen Kincardine and Banff on the application of either party for the purpose of determining any question which may arise regarding the damage done to the streets in the burgh by any excessive weight passing over the same or extraordinary traffic thereon in connection with the execution of the works authorised by this Order or the repair renewal enlargement alteration or improvement of the said works or of the existing works of the Corporation The said arbiter shall at the request of either party and after intimation to the other party examine the said streets and shall satisfy himself as to their condition prior to their being used for the purposes of the traffic in the execution of the works authorised by this Order or the repair renewal enlargement alteration or improvement of the said works or of the existing works of the Corporation and on receiving a report from the burgh surveyor that any portion of the said

streets has been damaged and requires to be repaired as the result of such excessive weight or extraordinary traffic as aforesaid he shall after intimation to the Corporation and such enquiry as he may deem necessary authorise the execution by the town council of such repairs on the said streets as may be required and the said streets may be repaired by the town council accordingly and the arbiter shall determine the proportion of the cost of all such repairs to be borne by the Corporation and the town council respectively and on the arbiter certifying from time to time the proportion of the cost to be borne by the Corporation the same shall be paid forthwith by the Corporation to the town council The Corporation shall also pay all charges incurred to and by the arbiter in carrying out his duties under this subsection and the decisions of the arbiter under this subsection shall be final: A.D. 1916.

- (12) The Corporation shall be bound on the application of the town council to give from their existing works or from the works authorised by this Order within the limits of the burgh as the said limits are at present or may hereafter be defined or partly from one and partly from the other a supply of water in bulk by meter to an extent not exceeding fifty thousand gallons per day of twenty-four hours for watering or cleansing streets flushing and cleansing sewers and drains and extinguishing fires The price to be paid for each thousand gallons of such supply shall be at the same rate as is charged by the Corporation per thousand gallons of water for water supplied by meter outside the compulsory limits of water supply of the Corporation under deduction of twenty per centum from such rate Such supply shall be given at points to be indicated by the town council on the lines of the existing aqueducts conduits lines of pipes or other works of the Corporation or on the lines of the aqueducts conduits lines of pipes or other works authorised by this Order and the town council shall provide the necessary branch pipes stopcocks hydrants standpipes and any other structure or engineering appliance or means to enable such supply of water

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to be obtained under pressure or failing pressure being available to be pumped to a storage tank or tanks for the purpose of use or distribution. Provided that such supply of fifty thousand gallons per day shall not prejudicially affect or restrict the supply of water from time to time required within the compulsory limits of water supply of the Corporation:

(13) If any difference shall arise between the Corporation and the town council under this section (other than under subsections (10) and (11) of this section) such difference shall be referred to the decision of an arbiter to be mutually chosen or failing agreement to be appointed by the sheriff of Aberdeen Kincardine and Banff on the application of either party and the decision of such arbiter shall be final:

(14) In this section the expression "burgh surveyor" means the burgh surveyor of the burgh the expression "town clerk" means the town clerk of the burgh and the expression "street" means a street as defined by the Waterworks Clauses Act 1847 and the Burgh Police (Scotland) Acts 1892 to 1911 and includes footpaths and foot pavements of any street within the burgh.

For protec-
tion of
Great North
of Scotland
Railway
Company.

22. The following provisions for the protection of the Great North of Scotland Railway Company (hereinafter in this section called "the company") shall unless otherwise agreed in writing between the company and the Corporation apply and have effect (that is to say):—

(1) Before commencing any works or operations under the powers conferred upon them by this Order in or over or affecting any works or property belonging to or occupied or maintainable or repairable by the company or within a distance of twenty lineal yards measured at right angles to the fences of the railway of the company the Corporation shall submit to the company plans sections working drawings and specifications thereof showing the manner in which such works or operations are to be carried out as well as the design material and mode of execution thereof for approval of the company which approval shall

not be unreasonably withheld and shall be deemed A.D. 1916.
to have been given unless the company signify their
disapproval within twenty-one days after submission
of the said plans sections working drawings and
specifications in which event any questions between
the company and the Corporation shall be determined
by arbitration in manner hereinafter provided All
the said works and operations shall be constructed
carried on and completed in conformity with the
plans sections working drawings and specifications so
approved or as settled by arbitration at the sole risk
and cost of the Corporation and at the sight and to
the reasonable satisfaction of the engineer of the
company and all such works shall be maintained
repaired or renewed by the Corporation in all time
coming at their sole cost at the sight and to the reason-
able satisfaction of the said engineer Provided that if
and whenever the Corporation fail to make good any
want of repair of the said works which in any way
affects the company or their works or property the
company may after giving fourteen days' notice
thereof to the Corporation or in case of emergency
without notice make and do all such works and
things as may be reasonably requisite in that behalf
and the sum from time to time certified by the
engineer of the company to be the reasonable amount
of the expenditure so incurred shall be repaid to the
company by the Corporation :

- (2) At the points of crossing no part of the works of the Corporation shall unless with the approval of the engineer of the company be less than three feet below the level of the rails of the company's railways or shall be above the level of the company's existing drains culverts or ditches :
- (3) Notwithstanding anything shown on the deposited plans and sections the Corporation shall not unless with the consent of the company (which shall not be unreasonably withheld) construct the Work No. 8 by this Order authorised within a distance of twenty-five feet from the fences of the company except at the points where such work crosses the company's

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railway works or property Provided that nothing in this subsection contained shall compel the Corporation to construct any part of their works outside the limits of deviation :

- (4) The Works No. 8 and No. 9 by this Order authorised shall where they pass beneath the railway of the company be carried by means of walled passages or culverts of sufficient height and width to admit of the same being examined to ascertain the condition and state of repair and to effect the repairs and renewals thereof and such walled passages or culverts shall at each such crossing extend to the fences of the railway of the company :
- (5) Where stop valves are required for the protection of the works or property belonging to or occupied or maintainable or repairable by the company the Corporation shall provide such stop valves when and as may be necessary and shall maintain the same all at their own expense :
- (6) The Corporation shall not without the previous consent in writing of the company enter upon or interfere with any works or property belonging to or occupied or maintainable or repairable by the company further or otherwise than may be necessary for constructing and maintaining any of the said works of the Corporation to be laid in upon over or under any such works or property and they shall not except as aforesaid alter or interfere with any of the said works of the company and shall not take or acquire any lands or property of the company for the purposes of this Order but shall be entitled to purchase and take such servitude only in upon over or under any land or property of the company as may be required for laying down and maintaining any of the works by this Order authorised The amount to be paid by the Corporation for the acquisition of such servitude shall be ascertained in case of difference in the manner provided by the Lands Clauses Consolidation (Scotland) Act 1845 with respect to the purchase of lands otherwise than by agreement :
- (7) The Corporation shall give twenty-eight days' previous notice in writing to the company of their intention

to commence any of the works by this Order authorised affecting the works or property of the company and such works shall be completed with all reasonable despatch and so that the traffic upon the railways of the company shall not be in anywise impeded or interfered with. Provided always that in cases of emergency such notice as is reasonably practicable shall be given:

- (8) The Corporation shall bear and on demand pay to the company the reasonable expenses of the employment by them during the making or maintenance of the Corporation's works under the railways of the company of a sufficient number of inspectors signalmen or watchmen for watching the railways and works of the company and the conduct of the traffic thereof with reference to and during the execution and maintenance of the said works and for preventing as far as may be all interference obstruction danger and accident from any of the operations or from the acts or defaults of any person or persons in the employment of the Corporation:
- (9) The Corporation shall pay to and reimburse the company in all reasonable costs charges and expenses which they may incur in connection with or in consequence of the construction of the works authorised by this Order or the subsequent maintenance use alteration replacing or repair thereof:
- (10) All the works and operations of the Corporation under this Order including the maintenance and any alteration replacing or repair of such works shall in so far as the same affect the works or property of the company be constructed executed completed and maintained by the Corporation so as not to injure alter or interfere with or endanger the structure or stability of the same or the electric telephonic or signalling apparatus belonging to or maintainable by the company and the Corporation shall execute all underpinning or strengthening necessary or which may be reasonably required by the company to secure the safety of the works or the property of the company as aforesaid and should any danger injury interruption

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impediment or interference to or with the passage or conduct of traffic on the railway of the company be caused by or be in any way owing to the works or operations of the Corporation by this Order authorised or the failure of or defect in the aqueducts conduits or lines of pipes or any works of the Corporation the Corporation shall free of all expense to the company execute and do all such works, as may be necessary to restore or remove such injury danger interruption or impediment as the case may be and in the event of their failing so to do or in case of emergency the company may themselves restore or remove such injury danger interruption or impediment and recover from the Corporation the reasonable expenses of so doing The Corporation shall also pay all costs and expenses and shall make reasonable compensation to the company for all loss or damage caused by such works and operations interruption impediment or interference to or with the aforesaid works or property The Corporation shall also indemnify the company for all damages or compensation which may be recovered from them by reason of such interruption impediment or interference or by reason of any accident so far as such interruption impediment interference or accident shall have been occasioned by or through the acts or default of the Corporation :

- (11) Nothing in this Order contained or which may be done in pursuance thereof shall prevent the company from maintaining repairing and whenever in their discretion thought necessary renewing deviating widening enlarging altering or reconstructing their railways bridges or approaches or other works in connection therewith without interference on the part of the Corporation and without incurring any liability to the Corporation or to any person using the works authorised by this Order for any loss injury damage or expense which may arise from such maintenance repair renewal deviation widening enlarging alteration or reconstruction unless the same shall arise from some neglect or default of the company or their agents workmen or servants in the execution of such maintenance

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repair renewal deviation widening enlarging alteration or reconstruction Provided that in the event of the company exercising any of such powers they shall do so in such manner as to cause as little damage and interference as practicable to and with the said works of the Corporation and shall give (except in cases of emergency in which cases notice shall be given as soon as possible) twenty-one days' previous notice in writing to the Corporation before commencing any such operations as may affect any of the said works of the Corporation by this Order authorised and if any avoidable injury or other interruption shall arise to the said works from or be owing in any way to any neglect or default of the company the company shall forthwith to the satisfaction of the Corporation make good or remove such injury or interruption at their own expense or the Corporation may do the same and the company shall pay the Corporation all costs and expenses loss or damage incurred or sustained by them in respect thereof If for the purposes or in consequence of any such operations of the company as aforesaid the company shall deem it necessary that any of the works of the Corporation shall be altered diverted or temporarily removed the Corporation shall with all reasonable speed after the receipt by them of notice in writing from the company requiring them so to do make at their own expense and to the satisfaction of the engineer of the company all such alterations diversions or temporary removals as may be specified in such notice :

(12) Any question or difference between the Corporation and the company arising under this section shall (except as expressly provided by subsection (6) hereof) be determined by an arbiter to be agreed upon between the Corporation and the company or failing agreement to be nominated by the Board of Trade on the application of either party :

(13) Notwithstanding anything contained in the section of this Order of which the marginal note is "Alteration of roads &c. temporarily" the Corporation shall not alter or stop up temporarily or otherwise any road or

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bridge of the company except with the consent of the company (which shall not be unreasonably withheld) and shall not alter or stop up temporarily or otherwise except with the consent of the company the railway or any electric or telephonic apparatus of the company:

- (14) The powers conferred by the section of this Order of which the marginal note is "Corporation may enlarge or increase number of pipes &c." shall not be exercisable in relation to the railways or property of the company. Provided that the culverts for carrying the aqueducts under the railways or property of the company may be so constructed as to contain two lines of pipes.

For protection of Sir Thomas Burnett Baronet of Leys.

23. For the protection of Sir Thomas Burnett Baronet of Leys (who and his successors in the estate of Leys or any portions thereof affected by the works or matters mentioned in this section are hereinafter in this section referred to as "the owner") the following provisions shall unless otherwise agreed in writing between the owner and the Corporation apply and have effect (that is to say):—

- (1) In this section the expression "the estate" means the estate of Leys the expression "the aqueduct" means the Aqueduct No. 3 (Work No. 8) and the works in connection therewith authorised by this Order to be constructed on the estate and the expression "the tenants" means the tenants for the time being of the estate or any part thereof:
- (2) The Corporation shall not under the provisions of this Order otherwise than by agreement purchase and take any lands belonging to the owner which may be required for the purposes of this Order except the lands coloured pink on the plan signed by Alexander Ledingham advocate in Aberdeen on behalf of the owner and William Gordon town clerk of Aberdeen on behalf of the Corporation. As regards the other parts of the estate within the limits shown on the deposited plans the Corporation may purchase and the owner shall grant to the Corporation a perpetual servitude of wayleave for the aqueduct which shall nowhere extend to a width of more than twenty

feet provided that no portion of the lands following shall be taken for such purpose namely (A) the plots marked 41 and 42 on the deposited plans in the parish of Banchory-Ternan (B) that portion of the field marked 43 on the deposited plans in the parish of Banchory-Ternan lying to the south of a straight line drawn from its westmost extremity to its eastmost extremity : A.D. 1916.

- (3) The aqueduct shall so far as the same is underground be constructed at such a depth that no part thereof shall be less than two feet six inches below the general surface of the ground which depth the Corporation shall maintain throughout in all time coming :
- (4) The aqueduct shall consist of not more than two lines of pipes and shall be so laid out as to comply with the requirements of the owner so far as reasonably practicable :
- (5) The Corporation shall immediately after the construction of each section of the aqueduct and other works contemplated in this Order as hereinafter in this subsection enumerated restore and make good to the reasonable satisfaction of the owner the surface of all lands of the owner in or under which any works are constructed or laid down and also all dykes fences gates watercourses ditches drains roads bridges culverts and other conveniences that may be interfered with The sections of the aqueduct and other works referred to in this subsection are (A) the Work No. 2 (Aqueduct No. 1) (B) the Work No. 3 and (c) the aqueduct in portions as the work proceeds of five hundred yards each in length :
- (6) With regard to the following roads upon the estate—
(A) the road leading from the Deeside public road to Cairnton House or Cottage and (B) the road leading from the said road westward to Trustack Cottage and to the intake the Corporation shall during the whole progress of the works maintain them and any bridges thereon in good passable condition With regard to the said road to Trustack Cottage the Corporation and the owner and his tenants shall after the completion of the works be entitled to the joint use and

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enjoyment thereof and the Corporation shall contribute equally with the owner to the cost of maintenance and repair :

- (7) In constructing the aqueduct the Corporation shall not interfere with the flow of water in any watercourse or to any mill on the estate but shall make provision for the continuous flow of water in any such watercourse necessarily interfered with :
- (8) In the construction of the Work No. 1 (new intake) the Corporation shall not in the bed of the River Dee construct any permanent pier or projecting dyke or any permanent work which would affect or interfere with the flow of the river or with the passage of fish Provided that the Corporation shall be entitled to construct such temporary works in the bed of the river as may be necessary during the construction of the said intake Due provision shall be made during the whole progress of the temporary works for the free passage of fish in the river :
- (9) The Corporation shall for the purpose of preserving the amenity of the road leading to Cairnton Cottage construct and maintain an embankment not less than seven feet high above the surface of the road along the west side of the field numbered 20 on the deposited plans in the parish of Banchory-Ternan and shall lay off and plant the embankment with suitable trees and underwood to the reasonable satisfaction of the owner :
- (10) For preserving the amenity of the River Dee the southern slopes of any spoil banks which may be formed by the Corporation alongside the River Dee on the lands numbered 40 and 43 on the deposited plans in the parish of Banchory-Ternan shall be trimmed and planted by the Corporation with suitable trees and the Corporation shall erect and maintain a suitable fence along the line running from east to west as aforesaid through the plot No. 43 on the deposited plans in the parish of Banchory-Ternan all to the reasonable satisfaction of the owner :
- (11) Nothing in this Order contained or which may be done in pursuance thereof shall affect or restrict the rights

of the owner to form lay out and make over or under or alongside the aqueduct any plantations roads walls fences drains pipes or other works but any such plantations roads walls fences drains pipes or other works shall be so formed laid out and made as not to interfere with injure or render less accessible any of the works of the Corporation and the construction of any such plantations roads walls fences drains pipes or other works where they pass over along or under the aqueduct or any works of the Corporation or shall be situated within ten feet of such works shall be carried out to the reasonable satisfaction of the Corporation or their officers who shall have every facility for inspecting such works during their construction The Corporation shall refund to the owner any expenditure which he may at any time incur by reason of the existence of the aqueduct in laying or repairing drains and water pipes for the use of himself his feuars or tenants as such expenditure failing agreement shall be ascertained by arbitration as hereinafter in this section provided:

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- (12) In the event of damage resulting at any time to the lands or fishings of the owner or to the banks bed or channel of the Dee ex adverso of the owner's lands by the discharge from any of the washout pipes of the Corporation of any injurious substance or matter the Corporation shall make compensation to the owner and his tenants for such damage:
- (13) If the existing supply of water to any of the buildings on the estate is at any time depleted or diminished in consequence of the exercise by the Corporation of the powers conferred on them by this Order the Corporation shall forthwith at their own expense make good the deficiency from the aqueduct or otherwise as may be arranged between the owner and the Corporation and the Corporation shall relieve the owner of all claims of damage at the instance of tenants or others having interest in consequence of such depletion or diminution:
- (14) The Corporation shall make compensation to the owner and his tenants for all damage and injury loss and

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expenses which they may sustain by reason or in consequence of the bursting or leakage of any works by this Order authorised or by reason or in consequence of any fire caused by the act negligence or default of the Corporation or their contractors:

- (15) The Corporation shall not be entitled to construct any of the works shown upon the deposited plans and sections on—

(A) the portion of the estate which is situated at Invercannie and Cairnton; and

(B) the remaining portions of the estate which are situated in the burgh of Banchory and at Crathes;

after the expiration of five years from the respective date or dates at which the construction of the works or any of them by this Order authorised shall have been commenced on the respective portions of the estate above specified. The particular works or portions of works hereinafter mentioned shall be constructed and completed within the periods of time from the commencement of each such work or portion respectively provided thereagainst and in each case one month's previous notice shall be given by the Corporation to the owner of the intention to commence the work at such places respectively (A) Work No. 1 (the intake) between the fifteenth day of May and the thirty-first day of August in any selected year (B) the Work No. 4 in so far as it materially interferes with the access by the road from the Deeside public road to Cairnton House or Cottage within one month being the month of May June or July in any year (C) Work No. 8 in so far as it involves interference with the access to the sandpit situated upon the policies of the estate between the east and west lodges within one month (D) Work No. 8 in so far as it involves interference with the ground leased to the Banchory Golf Club within six months which shall be confined to the winter months of any year (E) Work No. 8 between a point fifty yards west of the west lodge of Crathes to a point one hundred yards east thereof within three months:

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(16) The Corporation shall not deposit any lime or other chemical substance or product of the operations of their liming or treating station upon any part of the lands to be acquired by them under this Order Provided that nothing in this subsection shall be deemed to prohibit the Corporation from storing such lime or other chemical substance or product in any building of masonry or concrete with concrete floor that may be erected by the Corporation on the said lands for such purpose :

(17) The owner may at any time apply to the Corporation for a supply of water either from the aqueducts conduits lines of pipes or other works of the existing water supply of the Corporation or the aqueduct conduits lines of pipes or other works by this Order authorised and the Corporation shall thereupon make the necessary connections and shall give the owner by means thereof a supply of water for any part of the estate The price to be paid for such supply shall be at the usual rate for supplies beyond the city boundary as the same may from time to time be fixed by the Corporation and the owner shall repay to the Corporation the cost of forming such connections and of the supply and maintenance of meters as the same shall be agreed upon or ascertained by arbitration as in this section after mentioned Provided that such supply shall not prejudice or restrict the supply of water from time to time required within the compulsory limits of water supply of the Corporation :

(18) The Corporation shall pay to the owner the reasonable expenses of inspecting the construction of the works by this Order authorised and the repair renewal enlargement alteration or improvement thereof so far as such works run through or are situated in the estate but such inspection by or on behalf of the owner shall not relieve the Corporation from liability for any accident or damage caused by or through the operations of the Corporation or their contractors agents or workmen :

(19) Any question or difference between the Corporation and the owner arising under this section shall be determined

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by an arbiter to be agreed upon between the Corporation and the owner or failing agreement to be nominated by the Board of Trade on the application of either party.

For protec-
tion of Dun-
can Davidson
of Inchmarlo.

24. For the protection of Duncan Davidson of Inchmarlo Banchory Kincardineshire (who and his successors in the lands belonging to him in the parish of Banchory-Ternan and county of Kincardine are hereinafter in this section referred to as "the owner") the following provisions shall unless otherwise agreed between the owner and the Corporation apply and have effect (that is to say):—

- (1) The Corporation shall not under the provisions of this Order purchase and take any lands belonging to the owner provided that within the limits of deviation shown on the deposited plans the Corporation may purchase and the owner shall grant to the Corporation a perpetual servitude of wayleave for the Aqueduct No. 3 so far as within the said lands of the owner (hereinafter in this section referred to as "the aqueduct") which servitude shall in no case extend to a width of more than twenty feet:
- (2) The aqueduct shall be constructed at such a depth that no part thereof shall be less than two feet six inches below the general surface of the ground which depth the Corporation shall maintain throughout in all time coming:
- (3) The aqueduct shall consist of not more than two lines of pipes and such lines shall be so laid out as to comply with the requirements of the owner so far as reasonably practicable:
- (4) The Corporation shall give the owner one month's notice of their intention to commence the construction of the aqueduct and not more than five hundred yards of ground shall be broken up at any one time on the owner's lands without special consent:
- (5) The Corporation shall immediately after the construction of the aqueduct restore and make good to the reasonable satisfaction of the owner the surface of the said lands of the owner and also all dykes fences gates watercourses ditches drains roads pathways and culverts that may be interfered with:

- (6) The Corporation shall make compensation to the owner A.D. 1916.
for all damage and injury loss and expenses which
he may sustain by reason or in consequence of the
bursting or leakage of the aqueduct:
- (7) In the event of damage resulting at any time to the
lands or fishings of the owner or to the banks bed
or channel of the Dee ex adverso of the owner's lands
by the discharge from any of the washout pipes of
the Corporation of any injurious substance or matter
the Corporation shall make compensation therefor to
the owner for such damage:
- (8) If the existing supply of water to any of the buildings
on the estate is at any time depleted or diminished
in consequence of the exercise by the Corporation of
the powers conferred on them by this Order the
Corporation shall forthwith at their own expense
make good the deficiency from the aqueduct or
otherwise as may be arranged between the owner
and the Corporation and the Corporation shall relieve
the owner of all claims of damage at the instance of
tenants or others having interest in consequence of
such depletion or diminution:
- (9) The Corporation shall make compensation to the owner
and his tenants for all damage and injury loss and
expenses which they may sustain by reason or in con-
sequence of the bursting or leakage of any works by
this Order authorised or by reason or in consequence
of any fire caused by the act negligence or default
of the Corporation or their contractors:
- (10) The Corporation shall not be entitled on the estate of
the owner to construct any of the works shown
upon the deposited plans and sections after the
expiration of two years from the respective date or
dates at which the construction of such works or any
of them shall have been commenced:
- (11) Nothing in this Order contained or which may be done
in pursuance thereof shall affect or restrict the rights
of the owner to form lay out and make over or
under or alongside the aqueduct any plantations roads
walls fences drains pipes or other works but any such

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plantations roads walls fences drains pipes or other works shall be so formed laid out and made as not to interfere with injure or render less accessible any of the works of the Corporation and the construction of any such plantations roads walls fences drains pipes or other works where they pass over along or under the aqueduct or any works of the Corporation or shall be situated within ten feet of such works shall be carried out to the reasonable satisfaction of the Corporation or their officers who shall have every facility for inspecting such works during their construction The Corporation shall refund to the owner any expenditure which he may at any time incur by reason of the existence of the aqueduct in laying or repairing drains and water pipes for the use of himself his feuars or tenants as such expenditure failing agreement shall be ascertained by arbitration as hereinafter in this section provided :

- (12) Any question or difference between the Corporation and the owner arising under this section shall be determined by an arbiter to be agreed upon between the Corporation and the owner or failing agreement to be nominated by the Board of Trade on the application of either party.

For protec-
tion of
trustees of
Major
Thomas
Burnett
Ramsay.

25. For the protection of the trustees acting under the trust disposition and settlement of the deceased Major Thomas Burnett Ramsay of Banchory Lodge in the parish of Banchory-Ternan and county of Kincardine (who and their successors in the lands of Banchory Lodge belonging to the trustees in the said parish of Banchory-Ternan and county of Kincardine are hereinafter in this section referred to as "the owners") the following provisions shall unless otherwise agreed between the owners and the Corporation apply and have effect (that is to say) :—

- (1) The Corporation shall not under the provisions of this Order purchase and take any lands belonging to the owners provided that within the limits of deviation shown on the deposited plans the Corporation may purchase and the owners shall grant to the Corporation a perpetual servitude of wayleave for Work No. 8

(Aqueduct No. 3) so far as within the said lands of the owners (hereinafter in this section referred to as "the aqueduct") which servitude shall in no case extend to a width of more than twenty feet: A.D. 1916.

- (2) The Corporation shall restrict the limits of deviation of the aqueduct so as to entirely exclude therefrom Arbeadie Cottage situated on the owners' lands and the grounds connected therewith:
- (3) The aqueduct shall be constructed at such a depth that no part thereof shall be less than two feet six inches below the general surface of the ground which depth the Corporation shall maintain throughout in all time coming:
- (4) The aqueduct so far as situated on the estate of the owners shall consist of not more than two lines of pipes except in so far as it is constructed along the road or avenue situated on the owners' lands where it shall consist of only one line of pipe and such lines shall be so laid out as to comply with the requirements of the owners so far as reasonably practicable:
- (5) The Corporation shall give the owners one month's notice of their intention to commence the construction of the aqueduct and not more than one hundred and fifty yards of ground shall be broken up at any one place at one time on the owners' lands without special consent and the work shall be completed within one month from its commencement:
- (6) The Corporation shall immediately after the construction of the aqueduct restore and make good to the reasonable satisfaction of the owners the surface of the said lands of the owners and also all dykes fences gates watercourses ditches drains roads and culverts that may be interfered with:
- (7) The Corporation shall make compensation to the owners for all damage and injury loss and expenses which they may sustain by reason or in consequence of the bursting or leakage of the aqueduct:
- (8) In the event of damage resulting at any time to the lands or fishings of the owners or to the banks bed

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or channel of the Dee ex adverso of the owners' lands by the discharge from any of the washout pipes of the Corporation of any injurious substance or matter the Corporation shall make compensation therefor to the owners for such damage:

- (9) If the existing supply of water to any of the buildings on the estate is at any time depleted or diminished in consequence of the exercise by the Corporation of the powers conferred on them by this Order the Corporation shall forthwith at their own expense make good the deficiency from the aqueduct or otherwise as may be arranged between the owners and the Corporation:
- (10) The Corporation shall make compensation to the owners and their tenants for all damage and injury loss and expenses which they may sustain by reason or in consequence of the bursting or leakage of any works by this Order authorised or by reason or in consequence of any fire caused by the act negligence or default of the Corporation or their contractors:
- (11) The Corporation shall not be entitled to construct on the lands of the owners any of the works shown upon the deposited plans and sections after the expiration of two years from the respective date or dates at which the construction of the works or any of them by this Order authorised shall have been commenced:
- (12) The owners may at any time apply to the Corporation for a supply of water either from the aqueducts conduits lines of pipes or other works of the existing water supply of the Corporation or the aqueduct conduits lines of pipes or other works by this Order authorised and the Corporation shall thereupon make the necessary connections and shall give the owners by means thereof a supply of water for any part of the estate The price to be paid for such supply shall be at the usual rate for supplies beyond the city boundary as the same may from time to time be fixed by the Corporation and the owners shall repay to the Corporation the cost of forming such connections

and of the supply and maintenance of meters as the same shall be agreed upon or ascertained by arbitration as hereinafter in this section provided Provided that such supply shall not prejudice or restrict the supply of water from time to time required within the compulsory limits of water supply of the Corporation: A.D. 1916.

- (13) Nothing in this Order contained or which may be done in pursuance thereof shall affect or restrict the rights of the owners to form lay out and make over or under or alongside the aqueduct any plantations roads walls fences drains pipes or other works but any such plantations roads walls fences drains pipes or other works shall be so formed laid out and made as not to interfere with injure or render less accessible any of the works of the Corporation and the construction of any such plantations roads walls fences drains pipes or other works where they pass over along or under the aqueduct or any works of the Corporation or shall be situated within ten feet of such works shall be carried out to the reasonable satisfaction of the Corporation or their officers who shall have every facility for inspecting such works during their construction The Corporation shall refund to the owners any expenditure which they may at any time incur by reason of the existence of the aqueduct in laying or repairing drains and water pipes for the use of themselves their feuars or tenants as such expenditure failing agreement shall be ascertained by arbitration as hereinafter in this section provided:

- (14) Any question or difference between the Corporation and the owners arising under this section shall be determined by an arbiter to be agreed upon between the Corporation and the owners or failing agreement to be nominated by the Board of Trade on the application of either party.

26. For the protection of Theodore Crombie (who and his successors in the estate of Culter are hereinafter in this section referred to as "the owner") the following provisions shall unless otherwise agreed in writing between the owner and the Corporation apply and have effect (that is to say):—

For protection of Theodore Crombie of Culter.

A.D. 1916.
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- (1) In this section the expression "the estate" means the estate of Culter the expression "the aqueduct" means the Aqueduct No. 3 (Work No. 8) and the works in connection therewith authorised by this Order to be constructed on the estate and the expression "the tenants" means the tenants for the time being of the estate or any part thereof:
- (2) The Corporation shall not under the provisions of this Order purchase or take (otherwise than by agreement) any lands belonging to the owner but the Corporation may purchase or take and the owner shall sell to the Corporation a servitude of wayleave for the construction of the aqueduct through the estate:
- (3) The aqueduct shall so far as the same is underground be constructed at such a depth that no part thereof shall be less than two feet six inches below the general surface of the ground which depth the Corporation shall maintain throughout in all time coming and no part of the said work shall be visible above ground so far as the same passes through the policies and south approach to Culter House and Culter Lodge The servitude of wayleave to be acquired by the Corporation shall nowhere extend to a width of more than twenty feet:
- (4) The aqueduct shall consist of not more than two lines of pipes and shall be so laid out as to comply with the requirements of the owner so far as reasonably practicable:
- (5) The Corporation shall immediately after the construction of each section of five hundred yards of the aqueduct restore and make good to the reasonable satisfaction of the owner the surface of all lands of the owner in or under which any works are constructed or laid down and also all dykes fences gates watercourses ditches drains roads bridges culverts and other conveniences that may be interfered with:
- (6) In constructing the aqueduct the Corporation shall not interfere with the flow of water in any watercourse or to any mill on the estate but shall make provision for the continuous flow of water in any such watercourse necessarily interfered with:

- (7) Nothing in this Order contained or which may be done in pursuance thereof shall affect or restrict the rights of the owner to form lay out and make over or under or alongside the aqueduct any plantations roads walls fences drains pipes or other works but any such plantations roads walls fences drains pipes or other works shall be so formed laid out and made as not to interfere with injure or render less accessible any of the works of the Corporation and the construction of any such plantations roads walls fences drains pipes or other works where they pass over along or under the aqueduct or any works of the Corporation or shall be situated within ten feet of such works shall be carried out to the reasonable satisfaction of the Corporation or their officers who shall have every facility for inspecting such works during their construction The Corporation shall refund to the owner any expenditure which he may at any time incur by reason of the existence of the aqueduct in laying or repairing drains and water pipes for the use of himself his feuars or tenants as such expenditure failing agreement shall be ascertained by arbitration as hereinafter in this section provided :
- (8) In the event of damage resulting at any time to the lands or fishings of the owner or to the banks bed or channel of the Dee ex adverso of the owner's lands by the discharge from any of the washout pipes of the Corporation of any injurious substance or matter the Corporation shall make compensation to the owner and his tenants for such damage :
- (9) If the existing supply of water to any of the buildings on the estate is at any time depleted or diminished in consequence of the exercise by the Corporation of the powers conferred on them by this Order the Corporation shall forthwith at their own expense make good the deficiency from the aqueduct or otherwise as may be arranged between the owner and the Corporation and the Corporation shall relieve the owner of all claims of damage at the instance of tenants or others having interest in consequence of such depletion or diminution :

A.D. 1916.

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- (10) The Corporation shall make compensation to the owner and his tenants for all damage and injury loss and expenses which they may sustain by reason or in consequence of the bursting or leakage of any works by this Order authorised or by reason or in consequence of any fire caused by the act negligence or default of the Corporation or their contractors :
- (11) The Corporation shall not be entitled to construct any works on the estate after the expiration of five years from the date of the commencement of the construction on the estate of any of the works by this Order authorised :
- (12) The owner may at any time apply to the Corporation for a supply of water either from the aqueducts conduits lines of pipes or other works of the existing water supply of the Corporation or the aqueduct conduits lines of pipes or other works by this Order authorised and the Corporation shall thereupon make the necessary connections and shall give the owner by means thereof a supply of water for any part of the estate The price to be paid for such supply shall be at the usual rate for supplies beyond the city boundary as the same may from time to time be fixed by the Corporation and the owner shall repay to the Corporation the cost of forming such connections and of the supply and maintenance of meters as the same shall be agreed upon or ascertained by arbitration as in this section after mentioned Provided that such supply shall not prejudice or restrict the supply of water from time to time required within the compulsory limits of water supply of the Corporation :
- (13) The Corporation shall pay to the owner the reasonable expenses of inspecting the construction of the works by this Order authorised and the repair renewal enlargement alteration or improvement thereof so far as such works run through or are situated in the estate but such inspection by or on behalf of the owner shall not relieve the Corporation from liability for any accident or damage caused by or through

the operations of the Corporation or their contractors A.D. 1916.
agents or workmen :

- (14) Any question or difference between the Corporation and the owner arising under this section shall be determined by an arbiter to be agreed upon between the Corporation and the owner or failing agreement to be nominated by the Board of Trade on the application of either party.

27. For the protection of the Deeside Hydropathic Com- For protec-
pany Limited (who and their successors in the lands belonging tion of Dee-
to the said company on the north side of the Deeside Road at side Hydro-
Murtle in the parish of Peterculter and county of Aberdeen are pathic Com-
hereinafter in this section referred to as "the owner") the follow- pany
ing provisions shall unless otherwise agreed between the owner Limited.
and the Corporation apply and have effect (that is to say):—

- (1) The Corporation shall not under the provisions of this Order purchase and take any lands belonging to the owner provided that within the limits of deviation shown on the deposited plans and subject to the provisions of this Order and of this section the Corporation may purchase and the owner shall grant to the Corporation a perpetual servitude of wayleave for the Aqueduct No. 3 (Work No. 8) so far as within the said lands of the owner (hereinafter referred to as "the aqueduct") which servitude shall in no case extend to a width of more than twenty feet :
- (2) The price or compensation to be paid by the Corporation to the owner for the said wayleave shall failing agreement between the parties be determined in manner provided by the Lands Clauses Acts with respect to the purchase of lands otherwise than by agreement and such wayleave shall be deemed to be lands so far as regards the proceedings for the acquisition thereof and also for the purposes of any arbitration :
- (3) The aqueduct shall be constructed at such a depth that no part thereof shall be less than two feet six inches below the general surface of the ground which depth the Corporation shall maintain throughout in all time coming and no part of the said work shall be visible above ground :

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- (4) The aqueduct shall consist of not more than two lines of pipes and such lines shall be so laid out and situated as to comply with the requirements of the owner so far as reasonably practicable or as shall in the event of difference of opinion between the Corporation and the owner be determined by an arbiter to be appointed under subsection (8) of this section :
- (5) The Corporation shall give the owner one month's notice of their intention to commence the construction of the aqueduct and the work shall be carried out in the months of February or March and the whole shall be completed within one month from its commencement. The operations shall be entirely confined to a width of ten yards and no operations shall be carried out within that space except such as are necessary for the construction of the aqueduct :
- (6) The Corporation shall immediately after the construction of the aqueduct restore and make good to the reasonable satisfaction of the owner the surface of the said lands of the owner and also all dykes fences gates watercourses ditches drains roads and culverts that may be interfered with. The track in which the aqueduct is laid shall be re-opened only for the repair of the aqueduct unless with the consent of the owner (which consent shall not be unreasonably withheld) and if the track is at any time re-opened the Corporation shall pay to the owner such compensation as may failing agreement be fixed by an arbiter appointed under subsection (8) of this section :
- (7) The Corporation shall make compensation to the owner for all damage and injury loss and expenses which the owner may sustain by reason or in consequence of the bursting or leakage of the aqueduct :
- (8) Any question or difference between the Corporation and the owner arising under this section and not otherwise provided for shall be determined by an arbiter to be agreed upon between the Corporation and the owner or failing agreement to be nominated by the Board of Trade on the application of either party.

28. For the protection of John Murray Advocate Aberdeen or other the owner or owners for the time being of the lands hereinafter in this section referred to (all of whom are in this section included in the expression "the owner") the following provisions shall unless otherwise agreed in writing between the Corporation and the owner apply and have effect (that is to say):—

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For protec-
tion of John
Murray.

Nothing in this Order contained shall authorise the Corporation to interfere with or to take or acquire the lands or any servitude therein or thereunder in the parish of Peterculter in the county of Aberdeen numbered 146 and 147 on the deposited plans.

29. For the protection of the trustees of the estate of East Pitfodels situated on the south side of the North Deeside Road in the parish of Peterculter and county of Aberdeen (who and their successors in the said lands are hereinafter in this section referred to as "the owners") the following provisions shall unless otherwise agreed between the owners and the Corporation apply and have effect (that is to say):—

For protec-
tion of trus-
tees of estate
of East
Pitfodels.

(1) The Corporation shall lay the Aqueduct No. 3 (Work No. 8) so far as within the lands of the owners (hereinafter in this section referred to as "the aqueduct") so as to run as nearly as possible in a straight line from the Deeside branch of the Great North of Scotland Railway northwards along the east boundary of the property known as Millo and of the ground lying immediately to the south of that property to the North Deeside Road and thence eastward along the south side of that road to the property belonging to the Corporation at Mannofield:

(2) The owners shall for such purpose sell to the Corporation by way of feu the following pieces of ground on the lands of the owners (that is to say):—

(A) A piece of ground twenty-five feet in width marked "A" on the plan signed by James Younger Collie advocate in Aberdeen on behalf of the owners and by William Gordon town clerk of Aberdeen on behalf of the Corporation (hereinafter in this section referred to as "the signed plan") extending

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from the said railway to the line of deviation shown upon sheet No. 5 of the deposited plans as coloured red on the signed plan ;

(B) A piece of ground twenty-five feet in width marked " B " on the signed plan extending from the last-mentioned line of deviation in a straight line to the North Deeside Road and thence eastwards of a width of twenty-five feet along the said road to the line of deviation where it meets the said road together with the triangular piece of ground at the north-west corner of the said lands as coloured blue on the signed plan ;

(c) A piece of ground twenty-five feet in width marked " C " on the signed plan extending from the last-mentioned line of deviation to the north-west corner of the property of the Corporation at Mannofield as coloured red on the signed plan :

(3) The amount of the annual feu-duty to be paid by the Corporation to the owners in respect of the said pieces of ground shall unless otherwise agreed be determined by arbitration under the Lands Clauses Acts :

(4) The feu charter to be granted by the owners shall contain all the usual and necessary clauses and in particular clauses to the following effect :—

(A) Prohibiting the erection of any buildings or erections of any kind on the said pieces of ground ;

(B) Entitling the owners to use and cultivate without charge the said pieces of ground or any parts thereof until the portion of the said pieces of ground lying along the said public road shall be added to and form part of the said public road Provided that the owners do not interfere with or injure any of the works of the Corporation ;

(c) Prohibiting the Corporation from erecting any fence on the east or west sides of the piece of ground marked " A " on the signed plan ;

(D) Obliging the Corporation when required by the owners to form the portion of the said pieces

of ground extending from the said public road at the north-east corner of the property of Millo to the Deeside Railway into a suitable road to the satisfaction of the owners for the accommodation of their feuars and tenants: A.D. 1916.

(5) The Corporation shall not under the provisions of this Order purchase and take any lands belonging to the owners situated within the limits of deviation shown on the deposited plans except the pieces of ground marked "A" and "C" on the signed plan:

(6) With reference to the portion of the said pieces of ground lying along the said public road the following provisions shall apply:—

(A) The owners and their tenants and feuars shall without payment have full right of access to the lands of the owners in the same way as they have at present from the North Deeside Road;

(B) The Corporation shall when called on by the owners make up the said portion of ground to the level of the North Deeside Road;

(C) A fence or stone wall similar to the existing fences or walls shall be erected by the Corporation along the south side of the said portion of ground when so levelled up:

(7) The portion of the said pieces of ground lying along the North Deeside Road shall at the expense of the Corporation and subject to the approval of the county council of the county of Aberdeen be added to and form part of the North Deeside Road so soon as the same has been acquired from the owners. In the event of the approval of the said county council not being obtained the Corporation shall if called on by the owners be bound to keep the said portion of ground in good order to the satisfaction of the owners:

(8) If the present supply of water on the lands of the owners be depleted or diminished in consequence of the operations of the Corporation the Corporation shall forthwith at their own expense make good the

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deficiency from the aqueduct or otherwise as may be arranged between the owners and the Corporation and shall relieve the owners of any claim that may be made by their tenants in consequence of such depletion or diminution :

- (9) The owners may at any time apply to the Corporation for a supply of water to their lands and the Corporation shall thereupon at their own expense lay a sufficient pipe along the north boundary of the lands of the owners and shall give the owners by means thereof a supply of water for any part of their lands. The price to be paid for such supply shall be at the usual rates for supplies beyond the city boundary as the same may from time to time be fixed by the Corporation under deduction of twenty per centum and the cost of the necessary connections from the said pipe shall be paid by the owners from the point at which the said connections enter the lands of the owners. Provided that such supply shall not prejudice or restrict the supply of water from time to time required within the compulsory limits of water supply of the Corporation :
- (10) All dykes gates ditches drains and roads belonging to the owners which may be injuriously affected by the Corporation shall be made good by the Corporation as soon as possible and to the satisfaction of the owners :
- (11) The Corporation shall if required by the owners during the construction of the works fence off such parts of the lands of the owners as they may desire :
- (12) The Corporation shall make full compensation to the owners and their tenants or feuars for all damage and injury losses and expenses which they may from time to time sustain by reason or in consequence of the bursting or leakage of any works by this Order authorised :
- (13) In the event of the Corporation not exercising the powers of purchase conferred on them by this section within the period of three years from the date of the passing of the Act confirming this Order the

powers of compulsory purchase under this Order and this section so far as affecting the lands of the owners shall cease on the expiration of that period: A.D. 1916.

- (14) Any question or difference between the Corporation and the owners arising under this section (other than differences to which the provisions of the Lands Clauses Acts apply) shall be determined by a single arbiter to be agreed upon between the Corporation and the owners or failing agreement to be appointed by the sheriff of Aberdeen Kincardine and Banff on the application of either party.

30. For the protection of the trustees of the deceased John Cardno Ogston Couper of Craigiebuckler (who and their successors in the estate of Craigiebuckler are hereinafter in this section referred to as "the owners") the following provisions shall unless otherwise agreed between the owners and the Corporation apply and have effect (that is to say):— For protection of
Craigiebuckler Estate.

- (1) The Corporation shall not under the provisions of this Order purchase and take otherwise than by agreement any lands or property or interests therein belonging to the owners which may be required for the purposes of this Order other than the lands coloured pink on the plan signed by Lachlan Mackinnon advocate in Aberdeen on behalf of the owners and William Gordon town clerk of Aberdeen on behalf of the Corporation (hereinafter in this section referred to as "the signed plan") As regards the other parts of the estate situate within the limits of deviation shown on the deposited plans the Corporation may purchase and the owners shall grant to the Corporation such wayleaves servitudes or other rights as may be reasonably necessary for the purposes of the Aqueduct No. 5 (Work No. 10) the Aqueduct No. 6 (Work No. 13) (hereinafter in this section referred to as "the aqueducts") and the Washout Pipe (Work No. 12):
- (2) In the event of the Corporation purchasing and taking the lands coloured pink on the signed plan they shall also acquire and the owners shall sell to the Corporation for the purposes of this Order the lands coloured green on the signed plan:

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- (3) The price or compensation to be paid by the Corporation to the owners for the purchase of the lands coloured green on the signed plan and for the said wayleaves servitudes or other rights shall failing agreement between the parties be determined in manner provided by the Lands Clauses Acts with respect to the purchase of lands otherwise than by agreement and such wayleaves servitudes or other rights shall be deemed to be lands so far as regards the proceedings for the acquisition thereof and also for the purposes of any arbitration:
- (4) In constructing on lands of or acquired from the owners any of the works by this Order authorised the Corporation shall not interfere with the existing water supply of the farm known as Braeside Farm without first making provision for the protection and continuance of the same to the reasonable satisfaction of the owners or providing a substituted supply to the like satisfaction. If the existing supply of water to the said farm is at any time depleted diminished or deteriorated in consequence of the exercise by the Corporation of the powers conferred on them by this Order the Corporation shall from the Aqueduct No. 6 by this Order authorised or otherwise as may be agreed with the owners and free of charge to the owners or their tenant give a supply of water not inferior in quantity to the existing supply for agricultural and market garden purposes to the farm buildings and to the fields numbered 175 179 and 180 on sheet 5 of the deposited plans and shown on the signed plan and shall also at their own expense and free of charge to the owners and their tenant construct such works as may be necessary to provide such substituted supply all to the reasonable satisfaction of the owners. The Corporation shall also make good to the reasonable satisfaction of the owners and their tenant any damage that may be caused by the construction of the said works or any of them to the agricultural drains on the said farm:
- (5) If in constructing the works by this Order authorised the Corporation interfere with any private roads on

or accesses to the lands of the owners they shall restore the same or provide substituted roads and accesses to the reasonable satisfaction of the owners: A.D. 1916.

- (6) The Corporation shall if required by the owners (but not otherwise) and to the reasonable satisfaction of the owners during the construction or repair of the works fence off the whole or such part as the owners may so require of the lands of the owners in or upon which the Corporation acquire any wayleaves servitudes or other rights from the adjoining lands of the owners. The Corporation shall reconstruct all fences on the lands of the owners which may be interfered with during the construction of any work:
- (7) Nothing in this Order contained shall affect or restrict the rights of the owners to cultivate the lands in which such wayleaves servitudes or rights are acquired or to form lay out and make along or over or under such lands any roads walls fences sewers drains or pipes but any such roads walls fences sewers drains or pipes shall be so laid as not to interfere with or injure any of the works of the Corporation and the construction of any such roads walls fences sewers drains or pipes where they pass over along or under the aqueducts or any works of the Corporation or shall be situated within ten feet of such works shall be carried out to the reasonable satisfaction of the Corporation or their officers:
- (8) The Corporation shall give to the owners and to the tenant of the said farm before commencing the construction or repair of any works in through upon or over any lands of the owners not less than fourteen days' notice of the intention to commence the same except in cases of emergency arising from accident or from defects in any of the pipes or other works in which case the notice shall be given as soon as is practicable after the commencement of the works or the necessity for the same shall have arisen:
- (9) The Corporation shall to the reasonable satisfaction of the owners restore and make good the surface of all lands of the owners in or under which any works are constructed or laid down:

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- (10) The Corporation shall not without the consent of the owners lay or maintain any pipe nearer to the surface of any lands of the owners than two feet six inches and all work in connection with the construction or repair of any aqueduct line of pipes or part of any line of pipes and the restoration and making good of the surface of all lands of the owners shall be executed and completed by the Corporation with all reasonable despatch and to the reasonable satisfaction of the owners :
- (11) The Corporation shall make full compensation to the owners and their tenant for all damage and injury loss and expenses which they may from time to time sustain by reason or in consequence of the bursting or leakage of any of the works by this Order authorised :
- (12) Any question or difference between the Corporation and the owners arising under this section (other than differences to which the provisions of the Lands Clauses Acts apply) shall be determined by a single arbiter to be agreed upon between the Corporation and the owners or failing agreement to be appointed by the sheriff of Aberdeen Kincardine and Banff on the application of either party :
- (13) The provisions of the section of this Order whereof the marginal note is "Compensation to be settled by single arbiter" shall not apply to or in respect of any interest of the tenant in the said farm :
- (14) The Corporation shall not be entitled to construct the works on the estate after the expiration of five years from the date of the commencement of the construction on the estate of any of the works by this Order authorised.

Additional
lands.

31. The Corporation may from time to time for the purposes of this Order purchase by agreement in addition to the other lands by this Order authorised to be taken by compulsion any lands not exceeding in the whole thirty acres but nothing in this Order shall exonerate the Corporation from any action interdict or other proceeding for nuisance in the event of any nuisance being caused or permitted by them upon any land

purchased under the powers of this section and no house or building shall be erected on any such lands other than any houses or buildings which may be required in connection with the water undertaking. A.D. 1916.

32. The Corporation shall not construct any works for taking or intercepting water from any lands acquired by them unless the works are authorised by and the lands upon which the same are to be constructed are specified in this Order or some Act of Parliament or other Order confirmed by Parliament. Limiting powers of Corporation to abstract water.

33. The Corporation on selling any lands acquired for or in connection with the purposes of this Order and not required to be retained for those purposes may reserve to themselves all or any part of the water rights or other servitudes belonging thereto and may make the sale subject to such reservation accordingly and may also make any such sale subject to such other reservations special conditions restrictions and provisions as they may think fit. Reservation of water and other rights on sale.

34. The Corporation may from time to time subject to the provisions of this Order lay down maintain use extend alter renew remove relay replace enlarge and increase the number and size of the aqueducts mains pipes filters tanks channels and other works by this Order authorised Provided that the powers conferred by this section shall be exercised only on lands or property belonging to the Corporation or over which they may have acquired a servitude under the provisions of this Order or which may be acquired by them by agreement or in roads which they may be by the Waterworks Clauses Acts 1847 and 1863 or by this Order authorised to open and break up for such purposes. Corporation may enlarge or increase number of pipes &c.

35. The Corporation may for the purposes of the water undertaking take appropriate divert and use by means of their existing waterworks and the works authorised by this Order any quantity of water from the River Dee at Cairnton not exceeding three millions of gallons in any one day reckoning from midnight to midnight in addition to the eight millions of gallons authorised to be taken by the Acts of 1862 and 1885. Power to take additional water from River Dee.

36. The Corporation may for the purpose of constructing repairing examining emptying or cleansing the works authorised by this Order discharge water temporarily from any of such Power to discharge water into streams &c.

A.D. 1916. works into any stream or watercourse with which any of such
 ——— works may communicate In the exercise of the powers conferred
 by this section the Corporation shall do as little damage as may
 be and shall make full compensation for all damage caused by
 reason or in consequence of the exercise of such powers and
 such compensation shall be settled in default of agreement by
 arbitration in accordance with the provisions of the Lands
 Clauses Acts.

Provision as
 to discharge
 of water
 from filters.

37. Before discharging any water from the Washout Pipe
 (Work No. 7) by this Order authorised the Corporation shall con-
 struct and thereafter maintain a settling tank at a suitable point
 on the left bank of the River Dee for the purpose of intercepting
 the washings from the filters and other works by this Order
 authorised and such settling tank shall be constructed at the
 sight and to the reasonable satisfaction of Charles Pullar Hogg
 civil engineer Glasgow on behalf of the Corporation and
 William Allan Carter civil engineer Edinburgh on behalf of
 the District Board of the District of the River Dee and failing
 either or both of them at the sight and to the reasonable satis-
 faction of an engineer or engineers to be nominated by the
 Corporation and the said District Board respectively and in the
 event of any difference arising between the said engineers such
 difference shall be determined by an arbiter to be appointed by
 the President of the Institution of Civil Engineers.

Provision as
 to gauge &c.

38.--(1) The Corporation shall for the purpose of ascer-
 taining the quantity of water daily appropriated for the purpose
 of water supply before taking any of the supply hereby autho-
 rised construct and shall thereafter in all time maintain such
 suitable and sufficient measuring gauge or other apparatus over
 or through which the whole supply taken in at Cairnton Intake
 shall flow or be taken in and such gauge and the daily records
 thereof shall at all reasonable times be open to the inspection
 and examination of any person appointed by the District Board
 of the District of the River Dee and of the several persons for
 the time being interested in the water so taken.

(2) The said gauge shall be constructed at the sight and
 to the reasonable satisfaction of Charles Pullar Hogg civil
 engineer Glasgow on behalf of the Corporation and William
 Allan Carter civil engineer Edinburgh on behalf of the District
 Board of the District of the River Dee and failing either or

both of them at the sight and to the reasonable satisfaction of an engineer or engineers to be nominated by the Corporation and the said District Board respectively and in the event of any difference arising between the said engineers such difference shall be determined by an arbiter to be appointed by the President of the Institution of Civil Engineers. A.D. 1916.

(3) In the event of any difference or disagreement between the Corporation and the said District Board and the persons referred to in subsection (1) of this section or any of them with respect to the maintenance or use of the said gauge such difference or disagreement shall be settled and determined by an engineer to be agreed upon by the parties in difference or failing such agreement by an engineer to be nominated on the application of either party after seven days' notice in writing to the other party by the President of the Institution of Civil Engineers.

(4) In case of any neglect or default on the part of the Corporation to maintain the said gauge in a state of efficiency and in case of the quantity of water authorised by this Order to be taken being at any time exceeded the Corporation shall be liable to pay to the said District Board a penalty at the rate of twenty pounds per day for every day during which such gauge is out of order or the quantity of water authorised to be taken is exceeded.

(5) All penalties under this section shall be recoverable by the said District Board and may be sued for summarily in the Sheriff Court of Aberdeen Kincardine and Banff at Aberdeen at the instance of the said Board or their clerk and shall be recoverable along with the expenses of prosecution or action by poinding and sale and on recovery shall be paid to the said Board for the general purposes of the said Board.

39. The Corporation shall erect and maintain at or near the mouth of the new intake at Cairnton by this Order authorised a proper and sufficient grating or fender to prevent par or smolts from entering the Aqueduct No. 1 to be constructed under the authority of this Order and the provisions contained in section 392 (Grating to be erected to prevent par or smolts from entering conduit) of the Act of 1862 shall (so far as the same are or may be applicable and not inconsistent with

Erection of
grating at
mouth of
Cairnton
Intake.

A.D. 1916. the express provisions of this Order) extend and apply to the new intake at Cairnton and the Aqueduct No. 1 by this Order authorised.

On the completion of the said new intake and Aqueduct No. 1 the obligation imposed on the Corporation under the above-mentioned section of the Act of 1862 shall cease and determine.

New works
to form part
of water
undertaking.

40. Subject to the provisions of this Order the works to be constructed under the authority of this Order shall for all purposes be deemed to be part of the water undertaking and the provisions of the City Acts so far as relating to the water undertaking shall be read and apply accordingly.

Supply of
water from
aqueducts
&c.

41. The Corporation may supply water by meter or otherwise from the aqueducts conduits or lines of pipes by this Order authorised or from any of the existing works of the Corporation to any owners or occupiers of lands and heritages lying adjacent or near to the same and the Corporation may contract with all or any such persons for such supply at such rates and upon such terms and conditions and for such period or periods of time as they may agree Provided that the supply of water by the Corporation under this section shall be subject to the consent of any District Committee so far as such supply may be given within the area of any special water supply district formed or to be formed within the counties of Aberdeen or Kincardine.

Prevention
of contamin-
ation.

42. No substance which may be noxious or harmful to the primary uses of the water or hurtful to the fishings in the river or may injure or destroy the life or health of the fish therein shall be discharged into or permitted to enter the River Dee or any stream from the works authorised by this Order.

Power to
borrow.

43. The Corporation may borrow at interest on the security and credit of the water rates charges and other revenues of the water undertaking any sums not exceeding the sums hereinafter in this section mentioned and the Corporation may make and grant bonds and assignations for the money so to be borrowed and the provisions of the Act of 1891 with respect to the form of mortgage or assignation shall in so far as applicable apply to the moneys to be borrowed under the authority of this Order.

The sums hereinbefore referred to and authorised to be borrowed are as follows (namely):— A.D. 1916.

- (A)—(1) For the purchase of lands and servitudes the sum of ten thousand two hundred pounds;
- (2) For liming house buildings &c. the sum of two thousand three hundred pounds;
- (3) For reservoirs embankments dams tanks &c. the sum of one hundred and five thousand pounds;
- (4) For tunnels and masonry conduits the sum of twenty-seven thousand pounds;
- (5) For trunk mains the sum of two hundred and two thousand pounds;
- (6) For machinery the sum of two thousand five hundred pounds:
- (B) For the renewal and improvement of the existing aqueduct between Cairnton and the city thirty thousand pounds:
- (C) For the general purposes of the water undertaking (including additional filters) seventy-one thousand pounds:
- (D) For paying the costs charges and expenses of and incident to the preparing for obtaining and confirming this Order or otherwise in relation thereto such sum as may be necessary for that purpose.

44. The Corporation shall make provision for the repayment of the moneys borrowed under this Order within the respective periods hereinafter mentioned by one or other of the following methods as they may see fit (that is to say) either by repaying an equal portion of principal every year or by means of equal annual instalments of principal and interest or by means of an accumulating sinking fund The periods hereinbefore referred to shall be the following (that is to say):— Repayment of moneys borrowed.

- (1) As to moneys borrowed for the purposes (A) and (B) mentioned in the preceding section of this Order fifty years from the date or dates of borrowing the same:
- (2) As to moneys borrowed for the purpose (C) mentioned in the preceding section of this Order forty years from the date or dates of borrowing the same:

A.D. 1916.

(3) As to moneys borrowed for the purpose (D) mentioned in the preceding section five years from the passing of the Act confirming this Order.

Borrowing
powers
under this
Order to be
deemed
borrowing
powers under
Act of 1891.

45. For the purposes of the Act of 1891 the powers by this Order granted to the Corporation to borrow moneys shall be deemed a borrowing power of the Corporation within the meaning of the Act of 1891 and may be exerciseable by the Corporation as if those borrowing powers had been a borrowing power of the Corporation under the Act of 1891 and the provisions of Part IV (Borrowing and Corporation Stock) of that Act shall apply to the borrowing powers by this Order granted to the Corporation and this Order shall be deemed one of the City Acts specified in the Act of 1891.

Power to
re-borrow.

46.—(1) The Corporation shall have power—

(A) To borrow for the purpose of paying off any moneys previously borrowed under this Order which are intended to be forthwith repaid; or

(B) To borrow in order to replace moneys which during the previous twelve months have been temporarily applied from other funds of the Corporation in repaying moneys previously borrowed under this Order and which at the time of such repayment it was intended to replace by borrowed moneys.

(2) Any moneys borrowed under this section shall for the purposes of repayment be deemed to form part of the original loan and shall be repaid within that portion of the period prescribed for the repayment of that loan which remains unexpired and the provisions which are for the time being applicable to the original loan shall apply to the moneys borrowed under this section.

(3) The Corporation shall not have power to borrow for the purpose of making any payment to a sinking fund or of paying any instalment or making any annual payment which has or may become due in respect of borrowed moneys.

(4) The Corporation shall not have power to borrow in order to replace any moneys previously borrowed which have been repaid—

(A) By instalments or annual payments; or

(B) By means of a sinking fund; or

(C) Out of moneys derived from the sale of land; or

(D) Out of any capital moneys properly applicable to the purpose of the repayment other than moneys borrowed for that purpose. A.D. 1916. ---

47. All moneys borrowed by the Corporation under this Order shall be applied only to the purposes for which they are authorised to be borrowed and to which capital is properly applicable. Application of moneys borrowed.

48. Notwithstanding anything in this Order the Corporation shall not under the powers of this Order borrow any money during the continuance of the present war and twelve months thereafter unless the consent of the Treasury has been previously obtained. Restriction on exercise of borrowing powers during war.

49. Section 35 (Town Council to estimate annual sums required) of the Act of 1885 shall be read and construed as if the purposes mentioned in that section for which the Corporation are required once in every year to estimate and fix the amount of money necessary to be levied included the making of such contributions as the Corporation may deem expedient to a revenue reserve fund to be accumulated by the Corporation and applied towards payment of the interest on moneys borrowed or to be borrowed for the purposes of the water undertaking and the repayment of such moneys and section 43 (Application of rates) of the Act of 1885 shall be read and construed as if the words "including payments to a revenue reserve fund to be accumulated and applied towards payment of the interest on moneys borrowed or to be borrowed for the purposes of the water undertaking and the repayment of such moneys" were added at the end of that section. Provided that when and so soon as such payments amount to the sum of seventy thousand pounds no further payments shall be made to the said revenue reserve fund. Provided further that in the event of the works by this Order authorised not being commenced within the period of five years from the date of the passing of the Act confirming this Order the Corporation shall within two years after the expiry of such period transfer from the said revenue reserve fund to the credit of the water revenue account the said sum of seventy thousand pounds or such other sum as the said payments to the revenue reserve fund may then amount to with any interest accrued thereon and thereafter apply the same in annual instalments not exceeding five in number towards reducing the water rates rents and charges to be levied by the Payments to revenue reserve fund.

A.D. 1916. Corporation the amount of such annual instalments so far as reasonably practicable to be in proportion to the amounts contributed annually during the said period by the respective classes of water ratepayers and water consumers to the said revenue reserve fund.

Additional
provision as
to water
rates.

50. For the purposes provided in the immediately preceding section the Corporation may during the period of seven years from the date of the passing of the Act confirming this Order impose and levy the public water rate the domestic water rate and the water rents and charges at such rates as they may deem expedient provided that the rates rents and charges so imposed and levied shall not in any year exceed respectively the public water rate the domestic water rate and the water rents and charges which were imposed and levied by the Corporation for the year ending at Whitsunday one thousand nine hundred and fifteen.

Domestic
water rate.

51. Section 42 of the Act of 1885 shall be read and construed as if the words "Provided always that the domestic water rate shall always be a rate consisting of an integral number of pence in the pound" were omitted from that section.

Recovery of
water
charges.

52. The provisions of the city Acts with respect to proceedings for the recovery of the city rate shall extend and apply to all charges for water supplied by the Corporation.

Costs of
Order.

53. The costs charges and expenses of and incident to the preparing for obtaining and confirming of this Order or otherwise in relation thereto shall be paid by the Corporation out of the revenues of the water undertaking or out of moneys borrowed under the authority of this Order.

The SCHEDULE referred to in the foregoing Order.

A.D. 1916.

PROPERTIES WHEREOF PART ONLY MAY BE TAKEN.

County.	Parish or other Area.	Numbers on Deposited Plans.
Kincardine -	Parish of Banchory-Ternan	15 16 17 60 62 67 69 71 72 73 76 79 107 122.
Kincardine -	Police burgh of Banchory -	14 17 22 23 31 40 41 42 47 49 50 51 52 53 54 55 57 59 60 61 62 63.
Aberdeen -	Parish of Drumoak - -	11 32 33 43 46 51 60 61 63 65 66 68 69 86 87 99 105 109 111 112 113 114 123 126 127 128 129.
Aberdeen -	Parish of Peterculter - -	15 17 18 19 20 29 30 47 55 56 57 58 66 67 71 81 82 85 109 111 113 114 120 124 131 139 141 142 152 158 159 166 174.

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